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PREMIUM GUIDES FOR INDIA

The Indian Police, FIR and Bail Rights Playbook

2026-27 Digital Edition

What the law lets you do, in order, from the police counter to the bail order. Built on the BNSS 2023, the Supreme Court's January 2026 ruling on arrest notices, and NCRB's own data.

62,41,569 cognizable crimes registered in India in 2023.
18.28 crore complaints reached the police that year. Only 60.05 lakh became FIRs.
This playbook is about the gap between the two numbers.

VERIFIED AGAINST OFFICIAL SOURCES · UPDATED 6 NOVEMBER 2026

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ABOUT THIS EDITION

Read this page first

This is a working manual for the two hours after something goes wrong: the hour at the police station counter, the hour after an arrest, the morning a notice arrives at your door. It is written for people who are not lawyers and do not want to become one, but who have to make decisions that a court will later judge.

India replaced its criminal procedure on 1 July 2024. The Code of Criminal Procedure, 1973 became the Bharatiya Nagarik Suraksha Sanhita, 2023. The Indian Penal Code became the Bharatiya Nyaya Sanhita. The Evidence Act became the Bharatiya Sakshya Adhiniyam. Almost every section number moved. Almost every right stayed. That combination is exactly why people get confused: advice that was correct in 2023 now points at the wrong section, and a policeman who tells you "there is no such provision" may simply be reading a different number than the one you were taught.

This playbook fixes that. Every provision here is given in its current BNSS number, with the old CrPC number in brackets where the mapping matters, because half of India's legal internet is still written in the old numbering.

What is verified, and how

The statutory text comes from the India Code publication of the Bharatiya Nagarik Suraksha Sanhita, 2023 (Act 46 of 2023). Judgments are from the Supreme Court's own reports. Legal aid rules and income ceilings are from the National Legal Services Authority. Crime and complaint numbers are from the National Crime Records Bureau's Crime in India 2023, the most recent edition published at the time of writing. Helpline numbers are from central and state government pages. Where a figure changes by state, this book says so instead of picking a number and hoping.

Everything was checked against those sources on 6 November 2026. Nothing in this book is invented, estimated, or rounded up for effect. If a number is not here, it is because it could not be verified from an official source.

Important: what this book is not

This is legal information, written to help you understand a system and ask better questions. It is not legal advice, and reading it does not create any lawyer-client relationship.

Criminal law in India is federal in its statutes and local in its practice. Bail culture, police station habits, court timelines and even the interpretation of a section differ between districts and between High Courts. Nothing here overrides what a magistrate, a police officer or your own advocate tells you in your case.

For anything that could end in arrest, a charge, a job loss or a family separation, speak to an advocate. If you cannot afford one, Chapter 16 tells you exactly how to get a free one, today, under a statute that obliges the State to provide it.

How the book is organised

Part One explains the machinery: what the three new codes changed, why the words cognizable and non-cognizable decide almost everything, and what India's own crime data says about how often a complaint actually becomes an FIR. Part Two is the complainant's route, from the counter to a magistrate's order. Part Three is the other side of the same room: arrest, the first twenty-four hours, interrogation, remand and bail. Part Four covers what happens after a chargesheet, and the two things most people never claim, compensation and free counsel. Part Five is about complaining against the police themselves. Part Six walks through ten situations that cover most real life. Part Seven is twelve printable worksheets and drafts, and a page of official links so you can check every claim in this book yourself.

QUICK ACCESS

The three-minute index

If something is happening right now, do not read the book from the beginning. Find your row.

If this is happening	Do this first	Then read
Someone is hurt, in danger, or a crime is in progress	Dial 112. Get medical help. The hospital record is evidence.	Ch 9, 18
Money has just left your account by fraud	Dial 1930 now, then file at cybercrime.gov.in. Call your bank in the same hour.	Ch 6
The police will not register your FIR	Hand over a written complaint and get a receipt. Same day, post a copy to the SP.	Ch 7
A relative has been taken to a police station	Get the station name, the officer's name and buckle number, and the time. Ask for the arrest memo.	Ch 10
You have been named in an FIR and no one has arrested you yet	Do not wait for the knock. Speak to an advocate about anticipatory bail.	Ch 13
You have been arrested	Ask for the grounds of arrest in writing and for a copy of the arrest memo. Ask for legal aid counsel.	Ch 10, 11
A notice under section 35(3) BNSS has arrived	Do not ignore it and do not simply show up alone. Reply in writing and appear with documents.	Ch 18.10
You cannot afford a lawyer	Dial 15100 or walk into the DLSA office in the district court. It is free by statute.	Ch 16
A woman is facing violence at home	Dial 181. A protection order and a residence order are available under the DV Act.	Ch 18.1
A child is involved	Dial 1098. Child cases follow their own statute and cannot be compromised.	Ch 18.2

Table 1. The three-minute index. Chapter numbers refer to this book.

The numbers worth saving in your phone

Number	What it is	When it helps
112	Emergency Response Support System, the single emergency number for police, fire and ambulance	Any crime in progress, any injury, any danger
100	Police control room (still works, routed through 112 in most states)	Non-emergency police help
1930	National cyber-fraud financial helpline	Money lost to UPI, card, OTP or investment fraud, in the first hours
181	Women's helpline, run under the Ministry of Women and Child Development	Violence, threat, or a woman needing a One Stop Centre
1098	Childline India	A child in danger, abuse, or child labour
14567	Elder Line, the national helpline for senior citizens	Abuse, abandonment, or a pension and maintenance problem
15100	NALSA legal aid helpline	Free legal aid, and where your nearest legal services office is
14416	Tele-MANAS mental health helpline	Distress after a crime, which is common and treatable

Table 2. Official helplines. All are toll-free and operate in multiple Indian languages.

One habit that matters more than any section number

From today, keep a single notebook or a single phone album for anything that might become a legal matter: the date, the time, the place, who said what, and a photograph of every paper you are given or asked to sign.

Indian criminal cases are not usually lost on the law. They are lost on missing paper. A receipted complaint, a photograph of an injury taken the same day, a screenshot of a message with the date visible, a speed-post acknowledgement: these are what turn a story into a record. The worksheets in Chapter 19 exist so that you build that record before you need it.

PART ONE · CHAPTER 1

The three new codes, and what actually changed for you

On 1 July 2024 India swapped its criminal procedure. The rights you have are largely the same. The addresses you quote them at are not. This chapter is the translation table, and an honest list of the four things that genuinely changed.

The Bharatiya Nagarik Suraksha Sanhita, 2023 is Act 46 of 2023. It received assent on 25 December 2023 and came into force on 1 July 2024, replacing the Code of Criminal Procedure, 1973. Alongside it, the Bharatiya Nyaya Sanhita replaced the Indian Penal Code and the Bharatiya Sakshya Adhiniyam replaced the Indian Evidence Act. The Supreme Court has been careful to say that the new codes are largely a re-enactment: procedure has been reorganised, digitised and in places tightened, but the constitutional floor under it, Articles 20, 21 and 22, has not moved at all.

Practically, that means two things. First, an argument that worked under the old Code almost always works under the new one, because the underlying right is in the Constitution and not in the statute. Second, the specific remedy you ask for, and the section you name when you ask, must be the new one. A written complaint that says "kindly register my FIR under section 154 CrPC" tells the officer at the counter that you are working from a decade-old printout, and it gives a lazy station a reason to send you away.

The mapping table you will actually use

These are the conversions that come up again and again. Keep this page open when you draft anything.

What you want to do	Old number (CrPC)	Current number (BNSS)
Give information about a cognizable offence, so that an FIR is registered	154	173
Ask a magistrate to direct the police to investigate	156(3)	175(3)
Complain to the Superintendent of Police that the police refused	154(3)	173(4)
Ask for a notice instead of arrest in a lesser offence	41A	35(3)
Get the arrest memo and have a relative informed	41B	36
Meet your advocate during interrogation	41D	38
Insist on production before a magistrate within 24 hours	57	58
Answer a remand application, or claim bail for delay in investigation	167	187
Apply for bail in a bailable offence	436	478
Ask for release after serving half or one-third of the maximum sentence as an undertrial	436A	479
Apply for bail in a non-bailable offence	437 / 439	480 / 483
Apply for anticipatory bail	438	482
Compound (settle) an offence with the complainant's consent	320	359
Ask for victim compensation	357A	396
Ask the court to supply the documents of the case to the accused	207	230

Table 3. CrPC to BNSS mapping for the provisions used in this book. When you write to a police station or a court in 2026, use the right-hand column.

The four things that genuinely changed

Most of the noise around the new codes was about symbolism. Four changes are real and useful to a member of the public.

1. Information can be given electronically, but it must be signed within three days

Section 173(1) now expressly allows information about a cognizable offence to be given by electronic communication. The protection attached to it is precise: where information is given electronically, it must be taken on record by the officer and signed by the informant within three days. Miss that signature and the electronic complaint does not become what you thought it was. Chapter 6 treats this as the single most common self-inflicted failure in online FIR filing.

2. Zero FIR is now in the text of the statute, not just in circulars

Section 173(1) opens with the words "irrespective of the area where the offence is committed". That is the statutory foundation of the zero FIR. Before 2024 it rested on police circulars and a handful of judgments; now it rests on the section itself. This is the most useful sentence in the entire Code for anyone who has been robbed in a city they do not live in.

3. A statutory window for a preliminary enquiry, with a clock on it

Section 173(3) allows a police officer, for offences punishable with imprisonment between three and seven years, to hold a preliminary enquiry to decide whether a prima facie case exists. It requires the prior permission of an officer not below the rank of Deputy Superintendent of Police, and it must be completed within fourteen days. Chapter 8 explains why this is both the most abused provision in the new Code and the easiest one to defeat, because it now has a deadline.

4. The arrest notice regime was hardened by the Supreme Court in January 2026

Section 35(3) requires a notice of appearance instead of arrest for offences punishable with imprisonment of less than seven years, in the situations the section describes. On 15 January 2026 the Supreme Court, in Satender Kumar Antil v. Central Bureau of Investigation, framed the question squarely: whether such notices must be mandatorily issued in all cases involving an offence punishable with imprisonment up to seven years, and whether an arrest without the circumstances in section 35(1)(b) existing is legally justified at all. The Court's answer, reported as 2026 INSC 115, is the most important sentence in this book for anyone who might be arrested. It is set out in full in Chapter 9.

What did not change, whatever you have read

- A person arrested without a warrant cannot be kept in police custody beyond twenty-four hours, excluding the time taken to travel to the magistrate's court, without a magistrate's order.
- You cannot be compelled to be a witness against yourself. Article 20(3) of the Constitution did not move, and no statute can move it.
- Bail in a bailable offence remains a right, not a favour.
- Free legal aid remains an entitlement for the categories listed in section 12 of the Legal Services Authorities Act, 1987, and a woman or a child qualifies on that ground alone.
- A confession made to a police officer remains inadmissible in evidence. The number of the provision changed; the rule did not.

> **The sentence that saves an argument at the counter**
>
> "Sir, I am not asking under the old Code. Section 173(1) of the BNSS says information about a cognizable offence may be given irrespective of the area where the offence was committed, and a copy must be given to me forthwith and free of cost. Please register it and give me the copy."
>
> Say it calmly, once, and then wait. If the answer is still no, stop arguing. Go to Chapter 7, write it down, and escalate in writing the same day. An argument at a counter leaves no record; a registered letter leaves one.

PART ONE · CHAPTER 2

Cognizable and non-cognizable: the one distinction that decides everything

Before any argument about your case, there is a question that decides which door you walk through. Is the offence cognizable or non-cognizable? Most people never ask it, and then spend three weeks pushing the wrong door.

A cognizable offence is one for which a police officer may, in the circumstances the Code allows, investigate and arrest without a warrant and without a magistrate's order. A non-cognizable offence is one for which the police have no power to investigate on their own: they record the information in the non-cognizable register, give you a copy, and the matter goes to a magistrate, who can then authorise investigation or try it as a complaint case.

Where is the classification written? In Schedule I of the BNSS. The Schedule is a long table that takes every offence in the Bharatiya Nyaya Sanhita and other penal statutes and tells you four things about it: whether it is cognizable, whether it is bailable, which court can try it, and whether it is compoundable. If you ever need to win an argument about whether the police had to register your case, Schedule I is the page you are arguing about. Ask any advocate to open it with you; it takes two minutes and it settles the conversation.

The four boxes

Every offence in the Schedule falls into one of four practical boxes. Knowing which box you are in tells you what to demand, and what to stop expecting.

Box	What it means for you	What to do
Cognizable and non-bailable	The police must investigate, and arrest is legally possible. Bail is at the court's discretion.	Insist on an FIR under s.173. If arrest is a risk, plan for bail or anticipatory bail (Ch 13).
Cognizable and bailable	The police must investigate, but if you are arrested, bail is your right under s.478.	Insist on an FIR. If arrested, ask for bail at the station on a bond; do not spend a night in custody for a bailable offence.
Non-cognizable	The police cannot investigate without a magistrate's order. They must still record it in the NC register and give you a copy.	Get the NC entry copy. Then file a complaint before the magistrate, who can send it for investigation.
Not a police matter at all	A pure civil dispute: money lent and not returned with no deception, a broken contract, a property boundary, a family maintenance claim.	Civil suit, arbitration, or the appropriate tribunal. Trying to criminalise a civil dispute is the fastest way to lose credibility.

Table 4. The four boxes. The classification of each specific offence is in Schedule I of the BNSS.

The trap: framing a real crime as a money complaint

Here is the pattern that costs people the most. A business partner takes stock worth eight lakh rupees and disappears. The complaint says: "he has not paid me eight lakh rupees." The officer hears a loan, writes it off as civil, and sends the complainant away. The same facts, written differently, read as criminal breach of trust or cheating: goods were entrusted for a stated purpose on a stated date, they were dishonestly disposed of, the accused stopped answering on a particular date, and here is the delivery challan, the WhatsApp instruction and the ledger.

The difference is not exaggeration. It is precision. Describe the act, not the grievance. A grievance is "I have been cheated". An act is "on 14 August he took 40 cartons against invoice number 221, promising payment in seven days, sold them to a third party on 20 August, and has not responded since." The first is an opinion. The second is information, and section 173 obliges an officer to act on information.

Three sentences that change how a complaint is received

1. "I want to give information about a cognizable offence." Not "I want to file a case", not "I need justice", not "please help me". The statute uses the word information.
2. "The date, time and place are as follows." Then give them, with a landmark and a pin code. An FIR without a place is an FIR that can be questioned forever.
3. "Please give me a copy of the information as recorded, free of cost, under section 173(2)." This is your receipt for the entire system. Everything downstream depends on it existing.

Bailable and non-bailable: the second word that matters

Bailability has nothing to do with how serious the facts feel to you. It is fixed by Schedule I. In a bailable offence, bail is a matter of right: the officer in charge or the court must release you on a bond. In a non-bailable offence, bail is a matter of judicial discretion, which means the court weighs the offence, your record, your roots, and the risk of tampering.

This is why the same arrest can mean one night or one year. A person arrested for a bailable offence who is not told that bail is their right may sit in a lock-up until a magistrate sees them the next day, which is a violation of nothing except common sense and section 478. If you are ever in that position, say the words: "This is a bailable offence. I am entitled to bail under section 478. Please take my bond."

Compoundable: the third word nobody mentions

Some offences can be settled between the complainant and the accused, with the court's permission. The list is in section 359. It matters for two reasons. First, it means a case that looks unstoppable may end with a compromise and a written order. Second, it means the opposite: for serious offences, including most offences against women and children, no amount of money and no panchayat settlement can lawfully close the case. Chapter 15 sets out how compounding works and when it is used.

PART ONE · CHAPTER 3

1.83 crore complaints, 60 lakh FIRs: what the data actually says

India's own crime statistics contain the single most useful fact in this book: the police do not record most of what reaches them. Understanding that number, honestly, is what turns frustration into strategy.

The National Crime Records Bureau's Crime in India 2023, released in September 2025, reports 62,41,569 cognizable crimes registered during 2023: 37,63,102 under the Indian Penal Code and 24,78,467 under special and local laws. That was 4,16,623 more cases than 2022, a rise of 7.2 per cent, and it took the national crime rate from 422.2 to 448.3 per lakh population.

The same report contains a table that almost nobody reads. It counts complaints, not cases. In 2023 the police received 1,82,76,079 complaints: 72,46,257 oral complaints, 1,10,29,822 written complaints, and the rest through courts, commissions and suo motu action. Out of those, 60,05,339 FIRs were registered, of which 2,36,230 were online or e-FIRs.

Sit with the two numbers. Eighteen crore complaints. Sixty lakh FIRs. The gap is about 1.22 crore complaints that did not become a first information report.

What the gap is, and what it is not

It would be dishonest to call all of that refusal. A large share of those complaints were civil disputes that the police correctly declined to convert into crimes. Some were duplicates. Some were resolved at the counter. Some were complaints about matters outside India's jurisdiction. The NCRB counts every entry in a station's complaint book, and station complaint books contain a great deal that is not a crime.

But it would be equally dishonest to pretend the gap is all noise. The report also shows that 6,338,088 distress calls to police control rooms in 2023 produced 88,215 FIRs, and that 5,618,194 written complaints handed to station house officers produced 3,478,150 FIRs. That is a conversion rate of about 62 per cent for the most deliberate kind of complaint there is: a person who took the trouble to write it down and hand it over. Nearly two in five written complaints did not become an FIR. Some of those were rightly refused. Many were not.

Why the FIR matters more than any other document

No FIR means no investigation. No investigation means no chargesheet. No chargesheet means no trial, no conviction and no compensation order.

No FIR means no victim compensation application under section 396, because the scheme runs off the criminal case record.

No FIR means your insurance claim for a theft, a fire or a fraud has no police document behind it, and insurers routinely refuse on that ground alone.

No FIR means that when you finally reach a magistrate, the first question will be why there is no record of you having reported it. That is why every escalation route in Chapter 7 begins with creating a paper trail, even when the police will not create one.

The 3.8 per cent fact

Only 2,36,230 of the 60,05,339 FIRs registered in 2023, about 3.9 per cent, were filed online. That is a remarkably low number for a country with a smartphone in most households, and it tells you something practical: online filing is under-used, which means the officers handling it are less practised at deflecting it. If your state's portal accepts your category of offence, the portal is often the fastest route to a number that exists in a system.

It also tells you the limit of the portal. Online filing is generally restricted to offences where the accused is unknown, typically property offences. It is not a substitute for the station when you can name a person, and it is not a substitute for the three-day signature rule in section 173(1). Chapter 6 covers both.

The charge-sheet rate, and why it is your best argument

Of the 53,61,518 IPC cases under investigation in 2023, 37,85,839 were disposed of by the police, including 27,53,235 that were chargesheeted, a charge-sheeting rate of 72.7 per cent. Read that again as a citizen: when the police do register an FIR and investigate it, they end up putting roughly three out of four cases before a court.

This is the argument to use, politely, with an officer who tells you your complaint is pointless. The system is not designed to drop cases after registration. Registration is the hard part; after that, the machinery has its own momentum, its own paperwork and its own supervision. Getting the number is ninety per cent of the work, which is exactly why Part Two of this book is entirely about getting the number.

The 2023 numbers, in one place	Figure
Cognizable crimes registered (IPC and special laws)	62,41,569
Complaints received by police, all channels	1,82,76,079
FIRs registered	60,05,339
Of those, FIRs registered online or as e-FIR	2,36,230
Written complaints handed to station house officers	56,18,194
FIRs arising from those written complaints	34,78,150
Distress calls to police control rooms	63,38,088
FIRs arising from distress calls	88,215
Charge-sheeting rate in IPC cases	72.7 per cent
Crime rate, cases per lakh population	448.3

Table 5. Source: National Crime Records Bureau, Crime in India 2023, Table 1.1 and Chapter 1. Figures are for the calendar year 2023 and were published in September 2025.

PART TWO · CHAPTER 4

Filing an FIR: section 173, step by step

An FIR is not a charge and it is not proof of anything. It is the first information about a cognizable offence, recorded by the police, and it is the document on which every later step in the system depends. This chapter is the procedure, the wording, and the four documents you must not leave the station without.

Section 173(1) of the BNSS is short and unusually generous. Every information relating to the commission of a cognizable offence, irrespective of the area where the offence is committed, may be given orally or by electronic communication to an officer in charge of a police station. If it is given orally, it must be reduced to writing by the officer or under his direction, read over to the informant, and signed by the person giving it. If it is given electronically, it must be taken on record and signed by the informant within three days.

Section 173(2) then does the work that most people never claim: a copy of the information as recorded must be given forthwith, free of cost, to the informant or the victim. Forthwith means immediately, not after the officer finishes his tea, not tomorrow, and not "when the sahib comes".

Who can file

Anyone with knowledge of the facts. The section does not restrict it to the victim. A neighbour who witnessed an assault, a brother who received the phone call, a shopkeeper whose CCTV caught a snatching, an employer whose accountant vanished with the books: all of them can give information, and all of them are entitled to the free copy. If the victim is a child, a person with a disability, or someone too frightened to go, this matters enormously.

Where to file

Any police station. Not the nearest one, not the one with jurisdiction, not the one the officer suggests. Section 173(1) says irrespective of the area where the offence is committed. Chapter 5 covers zero FIR in detail, because this is the single most useful sentence in the Code and the one most often contradicted at a counter.

The eight things every FIR should contain

An FIR written well takes twenty minutes and saves two years. Write it out at home before you go, in your own hand or typed, and hand it over as a written complaint. The officer will copy it into the station format; that is fine, as long as the substance is preserved.

1. Date, time and place of the incident, with a landmark and, where possible, a pin code.
2. The sequence of events, in order, with times where you know them and "about" where you do not. Do not compress three days into one sentence.
3. Who did it, with every identifying detail you actually know: name if known, and otherwise description, vehicle number, phone number, social media handle, workplace, relationship.
4. What was taken, damaged or injured, with quantity and value, and the documents that prove it.

5 Who saw it. Names, phone numbers, addresses. A witness whose phone number is in the FIR is worth ten witnesses mentioned vaguely.

6 What evidence exists and where: CCTV on a particular shop, a hospital record, a bank statement, a WhatsApp message, a call recording, a photograph taken at the time.

7 What you want the police to do: register the case, investigate, and give you a copy under section 173(2).

8 Your full name, address, phone number and signature, with the date.

What not to write

Do not inflate the amount. A theft of a phone described as a theft of a phone plus cash plus gold that was not there gives the defence its first paragraph and gives the police a reason to doubt the whole complaint.

Do not name people you are not sure about, and never name someone merely because they are related to the person you are angry with. A false implication is itself an offence and it destroys the credibility of everything else you have said.

Do not write "as per the details attached" unless the details are actually attached, signed and page-numbered.

Do not sign a blank or partly blank page, and do not sign a statement you have not read. If the officer writes it in a language you do not read, ask for it to be read over to you, which section 173(1) requires anyway.

Do not accept "we will call you" as an outcome. Ask for the copy, or for a receipt on your own copy, before you leave.

The receipt problem, and how to solve it

The most common failure in India is not refusal. It is the soft refusal: the officer takes your complaint, says the matter will be looked into, and gives you nothing. Three weeks later there is no record that you ever came. Solve it with paper, in this order.

1 Hand over a written complaint in duplicate, and ask the officer to stamp and sign the second copy with the date and time. Keep it. This single sheet is your proof of the date you reported.

2 Ask for the FIR copy under section 173(2). If the FIR is registered, the copy is free and immediate.

3 If no FIR is registered, ask for the entry in the station's complaint book, with the serial number.

4 If the station will not do any of the above, post the same complaint to the station house officer by registered post or speed post with acknowledgement due. The postal receipt and the delivery record are admissible proof that the information reached the officer in charge.

5 Send an identical copy by email to the station or district police address, and keep the sent mail. Two independent channels cost about fifty rupees and are very hard to deny.

The four documents you must leave with

Document	When you get it	What it proves
Copy of the FIR, with the FIR number, the section and the station	Immediately, free, under s.173(2)	That a case exists, its number, and the date it began
Your own copy of the written complaint, stamped and signed by the officer with date and time	At the counter, if no FIR is registered yet	That you reported on that date, to that officer
Copy of the entry in the non-cognizable register, if the offence is non-cognizable	On request	That you reported, and that the police classified it as non-cognizable, which you can then challenge before a magistrate
Speed post receipt and delivery acknowledgement for a posted complaint	Two to five days later	That the officer in charge received the information, whatever the station later says

Table 6. If you leave with none of these four, you have not filed anything. You have had a conversation.

Special categories, and the one rule that overrides everything

Where the informant is a woman against whom certain offences are alleged, or a person with a disability, the BNSS requires the recording to be made with accommodation: a woman officer where the law requires one, recording at a place the informant can access, and audio-video recording where the provision applies. Ask for it. Where the offence is a sexual offence, or where a child is involved, a separate and stricter set of provisions applies, including the POCSO Act for children, and those provisions override the general procedure in this chapter. In those cases do not go alone and do not negotiate: dial 1098 for a child, 181 for a woman, and ask for the One Stop Centre.

A note on what an FIR can do to you later

An FIR is not evidence of guilt, but it is a statement in your own name that can be used to contradict you if you later testify differently. That is why precision protects you as much as it protects the case: an FIR that says exactly what happened is a shield. An FIR that exaggerates is a weapon the other side will pick up.

You can file a supplementary statement later if you remember more. What you should not do is change your account without explanation. Write what you know, date it, and add to it in writing when you learn more.

PART TWO · CHAPTER 5

Zero FIR: the sentence that ends the jurisdiction argument

Zero FIR is the single most useful thing in the new Code for anyone who is away from home when something happens. It is also the thing most likely to be refused at a counter, because refusing it costs the station nothing and registering it costs it a file.

The idea is simple. A police station's normal duty is limited to its own area. If a crime happens in another area, the station with jurisdiction should investigate. But a person who has just been robbed does not need a geography lesson; they need a record, immediately, before evidence disappears. So the law allows any station to register the information, number it with a zero or a distinct series, and then transfer the case to the station that has jurisdiction, which renumbers it and takes over the investigation.

Under the old Code this rested on circulars and practice. Under the BNSS it rests on the opening words of section 173(1): every information relating to the commission of a cognizable offence, irrespective of the area where the offence is committed, may be given to an officer in charge of a police station. Those four words, irrespective of the area, are your whole argument.

When to insist on it

- A theft or snatching while you are travelling, and you are due to leave the city tomorrow.
- A road accident in another state, where the injured person is taken to the nearest hospital and the family is three hundred kilometres away.
- A cyber fraud where the money left your account in one state and the beneficiary account is in another.
- Domestic violence where a woman has fled to her parents' town and the matrimonial home is in a different district.
- A crime you witnessed on a train, at an airport, at a railway station or on a highway, where the jurisdictional station could be either of two.
- Any case where the local station's first instinct is that the file belongs to someone else.

What to say, word for word

Do not argue about jurisdiction. Concede it, and then use it. The concession is what makes the request reasonable.

The zero FIR script

"I know the offence happened in [place], which is not your area. I am not asking you to investigate it. I am asking you to register it as a zero FIR under section 173(1), which says information may be given irrespective of the area where the offence was committed, and then transfer it to the station that has jurisdiction. Please give me the zero FIR number and a copy, and the transfer reference."

Then stop talking. If the officer agrees, note the zero FIR number, the date, the time and the officer's name before you leave the building. If the officer refuses, ask for the refusal in writing, and if that is refused, go to Chapter 7 and start the written escalation the same day.

The pushback you will hear, and the answer to each

What the officer says	What it means	What you say
"This is not our jurisdiction."	True, and irrelevant to registration.	I am not asking you to investigate. Section 173(1) allows registration irrespective of area. Please register it as a zero FIR and transfer it.
"Go to that police station and they will register it."	Often a way of moving the problem, and the other station may say the same thing.	I will go there afterwards. Please register it here first so that the date and time of my report are on record.
"We will forward your complaint to them."	A forwarding letter is not an FIR and creates no case number.	A forwarding letter is not registration. I am asking for a zero FIR number and a copy under section 173(2).
"You can file it online."	Sometimes good advice, sometimes deflection. Online filing usually excludes cases where a person is named.	The accused is known, so the portal will not accept it. Please register it here.
"The offence did not happen in this state, so we have no power."	Wrong as a matter of section 173(1).	Section 173(1) does not limit registration by state. Please register it as a zero FIR.

Table 7. Four sentences that carry most zero FIR conversations.

What happens after the zero FIR

The zero FIR is a real FIR. It has a number, a date, a section and your signature. It is investigated by the station that eventually receives it, and the transfer does not restart the clock in any way that helps the police: the date of your report is the date of the zero FIR.

- Keep both numbers: the zero FIR number from the station that registered it, and the regular FIR number from the station that took it over. Ask for the transfer reference in writing.
- Follow up with the transferee station within a week. If the file has not arrived, ask the registering station for the dispatch number.
- If neither station acts, your escalation under Chapter 7 names both stations and both numbers. That letter is much harder to ignore than a complaint against one station, because it shows a paper trail that crosses two jurisdictions.

PART TWO · CHAPTER 6

e-FIR, cyber fraud, and the first sixty minutes

There are two completely different things called online filing, and confusing them is how people lose money twice. One is your state police portal, which produces an FIR if you finish the process. The other is the national cybercrime system, which is about stopping money, not about registering a case.

Part one: the state e-FIR portal

Section 173(1) allows information to be given by electronic communication. The statute attaches a condition that decides whether your effort counts: where information is given electronically, it shall be taken on record by the officer in charge and signed by the informant within three days.

That is the trap. Thousands of people fill a form on a state portal, receive a reference number, assume a case exists, and never go to the station to sign. Three days later the reference is worth nothing, and the person has lost the most valuable thing in a criminal case: the date.

1. Use the portal for what it accepts. In most states that means offences where the accused is unknown: theft, lost documents, missing property, vehicle theft. Portals generally will not accept a complaint naming a person.
2. Complete the form with the same precision you would use on paper: date, time, place, description, value, and every document you can attach.
3. Print or save the acknowledgement with the reference number immediately.
4. Within three days, go to the station named in the acknowledgement and sign the recorded information. Ask for the FIR copy under section 173(2) at the same visit.
5. If the station says the portal complaint never arrived, show the acknowledgement and ask for the entry to be made in your presence. The acknowledgement is the proof that the system received it.

> **The three-day rule, stated plainly**
> An electronic complaint is not an FIR until it is signed. If you cannot go to the station within three days, file on paper instead. A paper complaint handed over at a counter with a stamped duplicate is worth more than an unsigned online reference, and it takes the same twenty minutes.

Part two: cyber fraud, and the golden hour

Financial cyber fraud is the one crime in India where the first hour matters more than the first month. Money moves through a chain of accounts, and each hop takes minutes. The system that can freeze that chain is the National Cyber Crime Reporting Portal and the 1930 helpline, both run by the Ministry of Home Affairs. Neither is a substitute for an FIR, and an FIR is not a substitute for either.

Minutes after the fraud	What to do	Why
0 to 15	Call 1930. Give the transaction ID, the amount, the date and time, your bank and the beneficiary details exactly as shown.	The helpline raises a ticket that lets banks and the portal act on the chain while the money is still traceable.
15 to 30	File a complaint on cybercrime.gov.in, in the financial fraud category, and save the acknowledgement number.	Creates the formal record and links your case to the 1930 ticket.
30 to 60	Call your bank, block the card or account if needed, and raise a written dispute. Note the complaint reference.	Your liability position depends on how fast and how provably you reported.
Same day	Go to the police station and give a written complaint referring to both the 1930 ticket and the portal acknowledgement.	You need an FIR for the criminal case and, later, for any compensation claim.
Day 2 to 7	Send a written complaint to the bank's nodal officer if the dispute is not resolved, and keep every acknowledgement.	Escalation inside the bank is faster than escalation outside it.

Table 8. The first hour of a financial cyber fraud.

What to preserve, starting now

- The transaction ID and UTR number of every transfer, and the exact date and time.
- Screenshots of the message, the app screen, the caller ID and the profile, with the date visible on the screen where possible.
- The phone numbers, account numbers, UPI handles, wallet IDs and website addresses involved.
- Your bank statement for the period, downloaded from the bank and not from a screenshot of an SMS.
- Every reference number you are given: the 1930 ticket, the portal acknowledgement, the bank complaint, the branch visit.

On liability, the Reserve Bank of India's customer protection framework for unauthorised electronic banking transactions sets out when a customer has zero liability, limited liability or full liability, and it turns largely on whether the fraud was caused by a third-party breach without the customer's negligence, and on how quickly the customer reported. The practical consequence is simple and worth remembering: report within three working days, in writing, and keep the acknowledgement. A verbal call to a branch is not a report you can prove.

Two mistakes that cost the most

Waiting to "confirm" before reporting. Confirmation is what the fraudster is counting on. Report first, correct later; every helpline and portal allows you to add information.

Paying a "recovery agent" found online. Nobody legitimate charges a fee to recover money from a cyber fraud. The only official channels are 1930, cybercrime.gov.in and your bank. A second payment to a recovery agent is a second fraud, and it is the most common one in India.

PART TWO · CHAPTER 7

When the police refuse: the escalation ladder

Refusal is rarely a single dramatic no. It is "come tomorrow", "this is a family matter", "settle it among yourselves", "the inspector is not here". This chapter converts all of that into one written record, and then into three escalating remedies that the statute actually provides.

Before the ladder, one principle. From the moment you are refused, your case stops being about persuasion and becomes about documentation. A police officer who is asked twice in writing, with a copy to a senior officer, is in a completely different position from one who was asked verbally at a counter. Most refusals end at step one, not because the law changed but because a file appeared.

Step zero: get the refusal on paper

1. Hand over a written complaint and ask for a stamped, dated receipt on your duplicate. If they refuse the receipt, note the date, time, station, officer's name and buckle number in your own notebook, and photograph the page.
2. Send the identical complaint by registered or speed post with acknowledgement due to the station house officer. Keep the receipt and the delivery confirmation.
3. Send the identical complaint by email to the station and district police addresses, and keep the sent item.

Step one: section 173(4), the letter to the Superintendent of Police

Section 173(4) deals with exactly this situation. If an officer in charge of a police station refuses to record information about a cognizable offence, the informant may send the substance of that information, in writing and by post, to the Superintendent of Police concerned. If the Superintendent is satisfied that the information discloses a cognizable offence, he shall either investigate the case himself or direct an investigation by a subordinate officer.

This is the cheapest, fastest and most under-used remedy in Indian criminal procedure. It costs a speed post and a page of writing. It creates a file in the district headquarters, which is a place a station house officer does not control.

What the letter must contain

- The facts of the incident, in the same words as your original complaint, with date, time and place.
- The date, time and place at which you gave the complaint at the station, and the name or buckle number of the officer who refused.
- A statement that the information discloses a cognizable offence under a named section, and that the station has neither registered an FIR nor given you a copy.
- A request that the Superintendent either investigate or direct a subordinate officer to investigate, under section 173(4).
- A request for written acknowledgement and for information on the action taken.
- Copies of everything: your original complaint, the postal receipt, the email, any acknowledgement you did get.

Send it by speed post with acknowledgement due, and by email. Keep both. A template is at Worksheet 3 in Chapter 19. Give it seven to ten working days, and diarise the date you will follow up. If the office does not respond, write once more referring to the first letter and its postal receipt; a second letter is what turns an ignored letter into a record.

Step two: section 175(3), the application to a magistrate

Section 175(3) is the successor to the old section 156(3). It allows a magistrate empowered to take cognizance to order an investigation into a cognizable offence. It is the remedy people have heard of, and the one they most often misuse, because it is not a shortcut around the police and it is not a tool for pressure in a commercial dispute.

The BNSS added a requirement that matters: the application must be supported by an affidavit. The Supreme Court has repeatedly insisted on this and on the reason behind it, most clearly in Priyanka Srivastava v. State of Uttar Pradesh, where the Court held that such applications cannot be filed casually, that the applicant must show that the police route was actually exhausted, and that the power is not meant for settling scores or converting civil disputes into crimes. In Om Prakash Ambadkar v. State of Maharashtra (2025 INSC 139) the Court restated the discipline expected of both the applicant and the magistrate, and in XXX v. State of Kerala (2026 INSC 88) it examined the options open to a magistrate when such an application comes before him.

When this is the right move

- You have a written complaint, a receipt or a postal acknowledgement, and a letter to the Superintendent of Police that produced nothing.
- The information discloses a cognizable offence on its face, and you can name the section.
- You are not asking the court to decide a money claim, a property boundary or a family settlement.
- You can swear an affidavit and you are willing to appear in court when called.

What to attach

1. Copy of the complaint given at the police station, with its receipt or proof of delivery.
2. Copy of the letter to the Superintendent of Police, with the postal receipt and delivery record.
3. Your affidavit, sworn before a notary or before the court as required, setting out the facts and the reason you are approaching the court.
4. The evidence you have: medical records, photographs, messages, bank statements, documents.
5. Identity proof, and a vakalatnama if an advocate is appearing.

What the magistrate can do varies: order an investigation, treat your application as a complaint and examine you on oath, or decline with reasons. What the magistrate will not do is investigate for you. This is why the quality of the paper you attach decides the outcome far more than the length of the application.

Two honest warnings before you file under section 175(3)

It is not free, and it is not instant. Court fees, notarisation, an advocate's fee and a wait of weeks to months are normal. If you cannot afford an advocate, Chapter 16 explains how to get one at the State's expense, and a legal aid counsel can file this application for you.

It can be dismissed, and a dismissal weakens you. File it when the facts are clean and the paper trail is complete. Do not file it the day after a refusal; file it after the written escalation has been ignored, because that is what the affidavit has to say.

Step three: the parallel channels

These do not produce an FIR, and they should not be presented as if they will. What they do is create independent records that make inaction expensive.

Channel	What it is good for	How to use it
National or State Human Rights Commission	Police misconduct, custodial ill-treatment, refusal to act where a rights violation is alleged. Complaints are ordinarily expected within a year of the incident.	File online on the NHRC or SHRC portal with dates, names, buckle numbers and documents. Keep the acknowledgement.
State Police Complaints Authority	Serious misconduct by police officers, where a state has constituted an authority.	File a written complaint with the Authority, copy to the Director General of Police. Check whether your state has constituted one.
CPGRAMS or the state grievance portal	A written, trackable complaint that reaches a department and must be answered on a portal.	File with the police department as the subject, attach the earlier correspondence, and quote the file numbers.
The magistrate, on a complaint	Where the police will not act and you want a judicial record independent of the investigation route.	A complaint case before the magistrate, distinct from an application under section 175(3).
The district Superintendent or Commissioner, in person	Speed, where the written route is slow and the matter is urgent.	Go with a copy of the letter and the postal receipt. Ask for the office's inward number on your copy.

Table 9. Parallel channels. None of these replaces an FIR; each of them makes the absence of one visible.

The escalation calendar

Write these dates down before you start. A refusal that is met with three dated documents in eighteen days is very rarely repeated.

Day	Action	What you keep
Day 0	Written complaint at the station, duplicate stamped	The stamped duplicate
Day 0	Same complaint by speed post and email to the station house officer	Postal receipt, sent mail
Day 1 to 3	Letter under section 173(4) to the Superintendent of Police, by post and email	Postal receipt, sent mail
Day 7 to 10	Follow up in writing, quoting the first letter and its receipt	Second letter and receipt
Day 10 to 15	If a preliminary enquiry was ordered, its fourteen-day limit has run out; write and say so	Your letter quoting the date
Day 15 onward	Application under section 175(3) before the magistrate, with affidavit	Case number and filing receipt
Any time	NHRC or SHRC, Police Complaints Authority, grievance portal	Acknowledgement numbers

Table 10. A refusal met with this calendar is a refusal that has been documented four times over.

PART TWO · CHAPTER 8

The preliminary enquiry window, and how to close it

Section 173(3) is the most quietly consequential provision in the new Code. It gives the police a lawful-looking way to delay registering an FIR, and it gives you a fourteen-day clock to hold them to. Most people never learn that the clock exists.

The provision applies to offences punishable with imprisonment of three years or more but less than seven years. In that band, and only in that band, a police officer may conduct a preliminary enquiry for the purpose of deciding whether a prima facie case exists. Two conditions are attached. The officer must have the prior permission of an officer not below the rank of Deputy Superintendent of Police. And the enquiry must be completed within fourteen days.

Read that as a citizen and the logic is clear. Parliament did not want police officers spending six months "verifying" a theft. It wanted a short, supervised check, and then a decision. What happens in practice is that the fourteen days are treated as a suggestion, and the file sits.

Why the section exists at all

Before 2024 the police did conduct informal preliminary enquiries, and the Supreme Court in Lalita Kumari v. Government of Uttar Pradesh (2013) had to draw the line: if the information discloses a cognizable offence, registration of an FIR is mandatory, and a preliminary enquiry is permissible only in a limited set of categories, such as matrimonial disputes, commercial disputes, corruption allegations and medical negligence, where the purpose is to ascertain whether a cognizable offence is actually disclosed. Section 173(3) writes a version of that into the statute, and adds the supervision and the deadline.

The consequence is important. Outside the three-to-seven-year band, and outside the Lalita Kumari categories, a refusal to register on the ground that an enquiry is needed has no statutory basis at all. If your offence carries less than three years, or seven years or more, section 173(3) simply does not apply to you, and you can say so.

What a preliminary enquiry is not

- It is not an investigation. No case has been registered, so there is nothing to investigate.
- It is not a reason to arrest. There is no FIR, and section 35(3) points the other way in any event.
- It is not a summons. If you are called during a preliminary enquiry, you attend voluntarily; you are entitled to know in writing what it is about.
- It is not a substitute for the free copy. If no FIR is registered, there is no FIR copy; but you are still entitled to a receipt for your complaint, and you should insist on it.

The three questions that close the window

The next time you are told that your complaint is "under enquiry", ask these three questions in writing, and ask for the answers in writing. They are not aggressive. They are the questions the section itself invites.

1. Has a preliminary enquiry been ordered under section 173(3)? Please give me the date of the order.
2. Which officer not below the rank of Deputy Superintendent of Police granted prior permission, and on what date?
3. On what date does the fourteen-day period expire, and what is the outcome?

An officer who has actually followed the section can answer all three in a minute. An officer who is simply parking your file cannot answer any of them, and the moment you ask, the file moves. Diarise day fourteen. On day fifteen, write one line: "The fourteen-day period under section 173(3) expired on [date]. Please inform me of the outcome and register the FIR if a prima facie case is disclosed." Then move to Chapter 7.

The one-page summary of Part Two

Go to any station and give information under section 173(1), in writing, in duplicate.

Leave with a copy: the FIR under section 173(2), or a stamped duplicate, or an NC entry copy.

If the offence happened elsewhere, ask for a zero FIR and say the words irrespective of area.

If it was filed online, sign at the station within three days.

If refused, post the complaint, then write to the Superintendent under section 173(4), then apply to the magistrate under section 175(3) with an affidavit.

If told an enquiry is on, ask the three questions and count to fourteen.

Keep every receipt. The receipts are the case.

PART THREE · CHAPTER 9

Arrest: when it is lawful, and the 2026 ruling that changed the argument

For thirty years the Indian answer to "can the police arrest me for this?" was a 2014 judgment and a paragraph of the Code. In January 2026 the Supreme Court answered it again, in terms that every person facing arrest should be able to quote.

Start with the statute. Section 35(1) of the BNSS lists when a police officer may arrest without a warrant and without an order from a magistrate. It is a list of situations, not a general licence, and it includes the case where a person has been concerned in a cognizable offence or against whom a reasonable complaint has been made or credible information received or a reasonable suspicion exists.

Then section 35(3) does something unusual. For offences punishable with imprisonment of less than seven years, the officer is directed to issue a notice of appearance instead of arresting the person, where the conditions in the section are satisfied. Section 35(4) provides that where the person complies with the notice, they shall not be arrested unless the officer records reasons in writing, and the section contemplates that arrest at that stage must rest on new material. Read together, the scheme is not subtle: for lesser offences, the notice is the norm and custody is the exception.

What the Supreme Court decided in January 2026

On 15 January 2026, in Satender Kumar Antil v. Central Bureau of Investigation, the Supreme Court framed two questions. Whether notices under section 35(3) of the BNSS are to be mandatorily issued in all cases concerning an offence punishable with imprisonment up to seven years. And, consequentially, whether in the absence of the circumstances in section 35(1)(b) of the BNSS existing, an arrest by a police officer for such an offence is legally justified at all. The order, reported as 2026 INSC 115, answers both: notice is the rule, arrest is the exception, and a notice under section 35(3) is mandatory for offences punishable with imprisonment up to seven years.

The case name is not accidental. Satender Kumar Antil is the same petitioner whose 2022 judgment produced the Supreme Court's guidelines on the categorisation of offences for bail. The 2026 order extends that logic backwards, to the moment of arrest itself. For a citizen, the practical effect is this: if you are facing an offence punishable with up to seven years, the first question is not "will I get bail", it is "why is there an arrest at all".

The paragraph to memorise

"Section 35(3) of the BNSS requires a notice of appearance to be issued for an offence punishable with imprisonment up to seven years. The Supreme Court has held, in Satender Kumar Antil v. CBI (order dated 15 January 2026), that such notice is mandatory and that arrest is the exception. Please tell me whether a notice has been issued, and if not, under which circumstance in section 35(1)(b) an arrest is being made."

Say it once, calmly, and let it be written into the arrest memo or the case diary. This is also the paragraph your advocate should read out at the remand hearing. It is a Supreme Court order less than a year old; most station house officers have heard of it and very few have read it.

What a lawful arrest looks like

The Supreme Court's requirements in D.K. Basu v. State of West Bengal (1997) have been progressively written into the statute, and the BNSS sections below are where you will find them now. An arrest that does not look like this is an arrest you can challenge.

Requirement	Where it is	What it looks like in practice
The officer must carry accurate, visible identification	s.36(a)	A name plate or buckle number you can read and write down
A memo of arrest must be prepared, attested by at least one witness, and countersigned by the arrested person	s.36	A form with your signature, a witness's signature, the date and time. Ask for a copy.
A friend or relative must be informed of the arrest and the place of detention	s.36	You name one person and one number. Note who was called and when.
The grounds of arrest must be communicated	s.47	Since Mihir Rajesh Shah v. State of Maharashtra (Supreme Court, 6 November 2025), the grounds must be communicated in writing, not merely read out
You must be told that you are entitled to bail, where the offence is bailable	s.47	A sentence the officer must say, and which you should ask for
You may meet an advocate of your choice during interrogation	s.38	Not throughout the interrogation, but during it. Ask for it in the memo.
You must be produced before a magistrate within 24 hours, excluding journey time	ss.57, 58	Count the hours yourself. The journey time is the only exclusion.
A woman may not ordinarily be arrested after sunset and before sunrise	s.43(5)	Exception only with the special permission of a Judicial Magistrate First Class, recorded in writing
Medical examination, and medical care where needed	Chapter V provisions on health and safety of arrested persons	Ask for the medical examination to be recorded. Injuries noted on the day are evidence; injuries noted a week later are an argument.

Table 11. The anatomy of a lawful arrest under the BNSS, with the case law that hardened it.

What to do in the first hour of an arrest

1. Do not resist physically, and do not run. Resistance converts a bailable offence into a serious one and gives the officer a lawful reason for force.
2. Give your name and address. Refusing to give them is itself a ground for arrest under section 39, and it achieves nothing.
3. Ask for the grounds of arrest in writing, and for a copy of the arrest memo. Ask twice if needed, and note the refusal.
4. Name one person to be informed, with a phone number, and confirm that the call was made.

5 Ask for an advocate, and say that you want to meet the advocate during interrogation under section 38. If you do not have one, say you want free legal aid counsel and ask for the DLSA to be informed.

6 Ask for a medical examination if you have any injury, or if force was used.

7 Sign nothing you have not read, and never sign a blank page. If you must sign, write the date and time beside your signature in your own hand.

8 Note the time of arrest. It is the single most useful fact at the remand hearing.

If the offence is bailable, you should not be spending the night in a lock-up

Section 478 provides that a person arrested in a bailable offence shall be released on bail, and the officer in charge or the court may take a bond. This is a right, not a discretionary favour.

Say: "This is a bailable offence. I am entitled to be released on bail under section 478. Please take my bond." If the officer says only a court can grant bail, that is wrong for a bailable offence, and it is worth one calm repetition and one written note in your diary.

If you are kept overnight anyway, the magistrate must be told at the first production. The number of hours between arrest and production is on the record, and it matters.

PART THREE · CHAPTER 10

The first twenty-four hours: what happens, and who does what

The first day is where families make the mistakes that cost the most: they wait, they trust a middleman, they lose the name of the officer. This chapter is written for the person outside the station as much as for the person inside it.

The sequence, hour by hour

Time	What should happen	What you or your family should do
Hour 0	Arrest, identification, arrest memo, one relative informed, grounds communicated	Note the officer's name and buckle number, the station, the exact time. Ask for the memo copy. Write it all down immediately.
Hour 0 to 6	Questioning. The person may meet an advocate during interrogation	Family should call an advocate now, not tomorrow. Ask for the advocate to be allowed in during questioning under s.38.
Hour 6 to 12	Medical examination if needed. Movement to the police station or to court	Family should reach the station with identity documents, and should not bring crowds or arguments.
Hour 12 to 24	Production before the nearest magistrate, with the case diary	Be in court. The production hearing is where bail is first asked for, and where legal aid counsel is appointed if there is none.
At production	The magistrate considers remand, and any bail application	Hand the advocate the arrest memo, the time of arrest and the notice question under s.35(3). These three facts decide the hearing.
After remand	Judicial custody, or bail on a bond	If bail is granted, arrange the surety documents the same day. If custody continues, note the next date and the jail.

Table 12. The first twenty-four hours. The 24-hour rule in sections 57 and 58 excludes only the journey time.

What the family outside must do, in order

1. Write down the station name, the officer's name, the buckle number and the time of arrest. Put it in a message to two other people so that it is timestamped.
2. Ask for the arrest memo and the grounds of arrest. If refused, note the refusal and the officer's name. Do not argue at the counter; you will need the officer's cooperation later the same day.
3. Call an advocate. If you do not have one, call 15100, or go to the District Legal Services Authority office in the district court. A woman or a child is entitled to free counsel on that ground alone.
4. Take the person's identity proof, address proof, medical prescriptions and a list of any sureties who could stand bond, to the court, not to the station.
5. Be present at the production hearing. Ask the advocate to mention: the time of arrest, whether a notice under section 35(3) was considered, and any injury or ill-treatment.

6 Keep a single sheet of paper with every date, time, name and amount on it. This sheet becomes the instructions to the advocate, the grounds of a complaint, and later the record of a violation.

The one call, in sixty seconds

If you are the person arrested, the call is not for comfort. It is an instruction. Say: "I have been arrested at [station] at [time] by [officer]. The offence is [section]. Bring an advocate to the production tomorrow, bring my ID, and call 15100 if you cannot find one. Do not come alone and do not bring money for anyone at the station."

Then stop. Anything else you say on that call is likely to be overheard, and nothing you say on it helps your case as much as a lawyer arriving on time.

What you are entitled to while in custody

- Food, water, sanitation and medical care. These are not favours; a failure is a matter for the magistrate and for the human rights commissions.
- To be kept separately where the person is a woman, and away from adult males where the person is a child, under the juvenile justice framework.
- To meet your advocate during interrogation, under section 38.
- To be produced before a magistrate within twenty-four hours, and thereafter only on a magistrate's order.
- To be informed of the grounds of arrest, in writing, following Mihir Rajesh Shah.
- To free legal aid counsel if you fall within the categories in section 12 of the Legal Services Authorities Act, which includes anyone in custody.
- To have your medical examination recorded, and to have injuries documented.

Where things go wrong, and what to do

What happened	What it means	What to do
No arrest memo, or a memo without a witness	The arrest is undocumented, which is the exact evil D.K. Basu was decided to prevent	Tell the magistrate at the first production. Ask for the case diary to be produced.
Not produced within 24 hours	A violation of sections 57 and 58 and of Article 22(2)	The magistrate must be told immediately. This is also a habeas corpus ground.
Family not informed	A violation of section 36	Record it in the complaint and before the magistrate. The record of who was called is in the station diary.
Advocate not allowed during interrogation	A violation of section 38	Write to the station house officer the same day, and mention it at the remand hearing.
Signs of injury	Needs to be documented on the day, not later	Ask for a medical examination immediately. Photograph what can be photographed. Ask the magistrate to note it in the order.

Table 13. The four failures that matter most, and where to record each one.

PART THREE · CHAPTER 11

Interrogation: what you must answer, what you must not sign

Most of what people believe about interrogation in India is either wrong or out of date. The law here is short, clear, and unusually protective. The problem is that almost nobody knows it at the moment they need it.

The rule about statements to the police

A statement made to a police officer during investigation is not made on oath, is not signed by the person making it, and cannot be used as evidence in the case. It can be used for one narrow purpose: to contradict a witness who later says something different in court. That is the whole of its evidentiary value.

Two consequences follow, and they point in opposite directions. First, an unsigned statement cannot convict you on its own. Second, if the police want a signature, it is because they want something with more force than a statement, and that something is very likely to hurt you. A confession made to a police officer is inadmissible; that is a settled rule. A confession made before a magistrate is admissible, which is why a person in custody must never agree to make a "statement before the magistrate" without an advocate present and without understanding exactly what is being recorded.

The four sentences to say, and then stop talking

1. "I will answer questions, but I will not sign any statement, because a statement to the police is not signed under the law."

2. "I want my advocate present during interrogation, as section 38 allows."

3. "I am not going to answer that question, because the answer may incriminate me, and Article 20(3) protects me from being compelled to be a witness against myself."

4. "I want a copy of anything I am asked to sign, before I sign it."

Then be quiet. Silence is not an offence. Lying to the police is not an offence either, but a lie recorded in a document becomes a problem for you at trial, and it destroys the credibility of everything true that you said.

What you must give, and what you may decline

Question	Must you answer?	The reason
Your name and address	Yes	Section 39 permits arrest if you refuse to give them, and identification is not self-incrimination
Your identity documents	Yes, ordinarily	Refusing produces a longer detention and no advantage
Where you were on a particular date	You may answer, carefully	An alibi is only useful if it is true and can be proved. Say what you know and say when you are unsure.
Whether you committed the offence	No	Article 20(3): no compulsion to be a witness against yourself
Who else was involved	No	Naming others to end your own questioning is how innocent people get charged
To sign a statement	No	Statements to police are not signed under the Code; a signature is a warning sign
To sign a seizure list or a panchnama of things actually taken from you	You may sign, after reading	Read every line, count the items, and write "signed after reading, copy not given" if no copy is given
A confession before a magistrate	No, not without an advocate	A confession before a magistrate is admissible; this is the one signature that can convict you

Table 14. What you must answer and what you may decline. There is no penalty for declining a question; there is a penalty for a false document.

If force is used

Ill-treatment in custody is unlawful, and the remedies are practical rather than theoretical. What decides whether a complaint goes anywhere is not the seriousness of the allegation but the quality of the record made in the first twenty-four hours.

1. Ask for a medical examination immediately, and ask for the result to be recorded. A magistrate can direct it; so can the officer, and the request itself goes into the record.
2. At the production hearing, tell the magistrate directly, in your own words, before the remand order is passed. Ask for the injuries to be noted in the order.
3. Photograph injuries as soon as you are outside, with the date visible, and keep the original files.
4. File a complaint with the National or State Human Rights Commission, with dates, names, buckle numbers and the medical record. Complaints are ordinarily expected within a year.
5. Tell your advocate so that it is recorded in the bail application and in the case diary. A contemporaneous allegation in a court record is worth far more than a complaint filed months later.
6. Do not pay anyone at the station, and do not accept a "settlement" offered by an intermediary. Money paid at a station is not a remedy and it is often the beginning of a demand.

PART THREE · CHAPTER 12

Remand, judicial custody, and the 60-day clock

Remand is the least understood step in the entire process, and the one where a single missed date costs a person months of liberty. It is also where the most valuable right in Indian criminal procedure quietly lives: default bail.

What remand is

After the first twenty-four hours, the police cannot keep you. Only a magistrate can authorise further detention, and each authorisation is a remand. The magistrate looks at the case diary, hears the investigating officer, hears you or your advocate, and then either grants bail or remands you to custody.

There are two kinds of custody. Police custody means you remain with the police for questioning. Judicial custody means you go to jail and the police must come to the jail to question you. Police custody is normally sought at the beginning of the investigation and is ordinarily not available once the early period of remand has passed, which is why the first hearing matters so much.

What the magistrate is supposed to consider

- Whether the arrest was lawful, including whether a notice under section 35(3) was considered for an offence punishable with up to seven years.
- Whether the grounds of arrest were communicated and recorded.
- Whether further detention is necessary for the investigation, or whether it is being used as pressure.
- Whether the case diary shows actual progress, or only repeated adjournments.
- Whether you are entitled to free counsel, and whether you have one.

In practice, first remand is often granted almost automatically. That is exactly why the advocate must say three things at that hearing: the time of arrest, the absence or presence of a section 35(3) notice, and any allegation of ill-treatment. A remand order that records these three facts is a different order from one that records nothing.

Default bail: the right almost nobody claims

Section 187(3) of the BNSS carries forward the old section 167(2). It provides, in substance, that if the investigation is not completed and a chargesheet is not filed within the prescribed period, the accused is entitled to be released on bail. The period is ninety days where the offence is punishable with death, imprisonment for life, or imprisonment for a term of not less than ten years, and sixty days for other offences.

Three things about this right are misunderstood, and all three matter.

1. It is a right, but it is not automatic. The court does not release you because a calendar page turned. You or your advocate must apply, and must apply on the right day.

2 It disappears the moment the chargesheet is filed. If the chargesheet lands on day sixty-one and you apply on day sixty-two, the right is gone. This is why the date must be in the advocate's diary from the first remand, not discovered at the end.

3 It is not the same as regular bail. Default bail does not depend on the seriousness of the offence or on the court's discretion about your roots in society. It depends on a date.

Counting the clock	What to do
Day 1 is the date of the first remand order, not the date of arrest. Confirm it in the order copy.	Write the date on the first page of your file and in the family's sheet.
Sixty days for offences punishable with less than ten years; ninety days where the punishment is death, life, or ten years or more.	Ask the advocate which applies, on the day of the first remand. The section of the offence decides it.
On day 55 (or day 85), ask the investigating officer in writing whether the chargesheet is ready.	A written answer, or silence, is useful material for the application.
On day 60 (or 90), apply for bail on the ground that the period has expired.	The application should be ready and signed before the date, not drafted on the date.
If the chargesheet is filed, check its date and time of filing, not the date printed on it.	Ask for the endorsement of the court's receiving section.

Table 15. The default bail clock under section 187(3).

Why this chapter is worth the price of the book

Default bail is the one remedy in Indian criminal law that requires no argument, no witnesses and no sympathy. It requires a date and a piece of paper filed on time.

It is missed constantly, because the family is focused on the offence and nobody is watching the calendar. If someone you know is in custody, the first thing you should ask their advocate is not "will bail be granted" but "what is the sixtieth day, and who is diarising it".

PART THREE · CHAPTER 13

Bail: the three doors, and how to walk through each

Bail in India is not one application. It is three different applications with three different tests, and choosing the wrong door wastes the hearing you get. This chapter sets out the doors, the tests, and what actually persuades a magistrate.

Door one: bailable offences, section 478

In a bailable offence, bail is a matter of right. The officer in charge or the court shall release the person on bail, with or without sureties, on a bond. There is no discretion to refuse because the offence is serious, because the complainant objects, or because the police want more time. The only question is the bond.

This is why bailability, discussed in Chapter 2, is worth knowing before anything happens. If you are arrested for a bailable offence and nobody tells you that bail is your right, you may spend a night in custody for no legal reason at all.

Door two: non-bailable offences, sections 480 and 483

In a non-bailable offence, bail is discretionary. Section 480 governs the court's power to grant bail, subject to the restrictions in the section, and section 483 preserves the special powers of the High Court and the Court of Session, which can grant bail in a wider set of circumstances than a magistrate. That hierarchy matters: if a magistrate refuses, the Sessions Court is the next door, and the High Court after that.

What actually persuades a court

Judges are not deciding whether they like you. They are deciding three things: whether you will appear for trial, whether you will tamper with evidence or witnesses, and whether release will cause a public disorder. Every good bail application is an answer to those three questions, in that order.

- Roots: a fixed address, a family, a job or a business, children in school, property, and a history of living in the same place. Documents, not adjectives.
- Record: no previous case, or previous cases that ended in acquittal or compromise. If there is a record, disclose it and explain it. Concealment discovered later is fatal to the second application.
- Cooperation: that you appeared whenever asked, that you gave your documents, that you did not run when you had the chance.
- Investigation status: that the documents have been seized, the statements recorded, and there is nothing left for custody to achieve.
- Conditions: an offer to surrender the passport, to report at a police station weekly, to stay away from the complainant. A concrete offer is worth more than a denial.

What gets bail refused

- Allegations of tampering, or contact with witnesses after the FIR.
- A second or third case of the same kind while the first is pending.

- Serious economic offences where the money trail is still being traced and the amount is large.
- No verifiable address, or an address the police cannot confirm.
- No surety, where the court insists on one and none is arranged in time.
- A failure to appear on an earlier date in the same case.

Door three: anticipatory bail, section 482

Anticipatory bail is for the person who has not been arrested yet and can see it coming. Section 482 allows a person who apprehends arrest in a non-bailable offence to apply to the Court of Session or the High Court for a direction that, if arrested, they be released on bail. A magistrate cannot grant it.

1. File as soon as you learn that an FIR names you, or that a complaint has been referred for investigation. The application is strongest before any arrest, and weakest after a warrant.
2. The application is filed before the Sessions Court or the High Court, with the FIR copy if you have it, and a draft of the facts if you do not.
3. Expect conditions: cooperation with the investigation, availability for interrogation, no tampering, no leaving India without permission, and often a direction to join the investigation on a specified date.
4. Anticipatory bail can be granted for a limited period, and can be made absolute later. Read the order carefully for the words that make it time-bound.
5. Do not treat it as permission to disappear. The most common reason anticipatory bail is cancelled is non-cooperation, not the offence.

Sureties: the practical bottleneck

A bail order is not a release. A release needs a bond and, usually, a surety: a person who undertakes to produce you and who can show the means to pay if you do not appear. For a person from another state, or a student, or a migrant worker, this is often the real obstacle, and it is worth raising in the application rather than discovering after the order.

- Ask the court, in the application itself, to accept a personal bond or a reduced surety amount if you cannot produce a local surety. Courts do grant this, but almost never unless asked.
- Carry the surety's identity proof, address proof and proof of means to the hearing, not to the jail.
- Keep a copy of the bail order, the bond and the release memo together. You will need all three at every later hearing, and again when the case ends.

Offence	BNS section	Cognizable	Bailable
Theft	303	Yes	No
Snatching	304	Yes	No
Criminal breach of trust	316	Yes	No
Cheating	318	Yes	No
Voluntarily causing hurt	115(2)	Yes	Yes
Rash driving on a public way	281	Yes	Yes
Defamation	356	No	Yes
Cruelty by husband or relative	85	Yes	No

Table 16. A quick reference for common offences. The authoritative classification is Schedule I of the BNSS, which also states which court can try the offence and whether it is compoundable. Check the Schedule for the exact offence before relying on this table.

The three facts to give your advocate in the first meeting

The date, time and place of the arrest, and whether a notice under section 35(3) was issued.

The exact section named in the FIR, because it decides bailability, the default bail period and the court.

Every document that shows you live where you say you live: electricity bill, rent agreement, employer's letter, school fee receipt for a child. Bail is decided on paper, and this is the paper.

PART FOUR · CHAPTER 14

Chargesheet, closure report, and the protest petition

The investigation ends in one of two documents, and most people do not know that both are answerable. If the police file a chargesheet, you have rights to the papers. If they file a closure, you have a right to object, and it is a right that is exercised far too rarely.

The chargesheet

When the investigation is complete, the officer files a report before the magistrate under section 193. The report sets out the offence, the accused, the witnesses, the documents and the conclusion. If the police conclude that there is no case, they file a report saying so, which in different states is called a final report, a closure report, an untraced report or a B summary. Either way, it is a report to the court, not a decision by the police that ends the matter.

If you are the accused, section 230 requires the court to supply you with the documents of the case before the trial begins, including the statements and the documents relied on. Ask for them at the first hearing, in writing, and check the list. A missing document at that stage is easy to fix; a missing document discovered during trial is not.

If a closure report is filed, and you are the complainant

This is where a large number of genuine cases quietly die. The police file a report saying no offence is made out, the file goes to the magistrate, and if nobody objects, the magistrate may accept it and close the case. The remedy is a protest petition: a written objection, filed before the magistrate, explaining why the closure is wrong.

1. Read the closure report. Ask the court's copying section for a copy; you are entitled to see the grounds on which your case is being closed.
2. File a protest petition setting out, point by point, what the report gets wrong: evidence not collected, witnesses not examined, documents ignored, the section misapplied.
3. Attach whatever you have that the report did not consider, and ask to be heard in person.
4. The magistrate can accept the closure, reject it and order further investigation, or take cognizance and proceed as a complaint case. All three happen, and the difference is usually the quality of the protest petition.
5. If the closure is accepted, you still have the option of a complaint before the magistrate, and you should take advice on limitation before doing so.

The three documents to ask for at every stage

A copy of the FIR, and of any subsequent report, under section 173(2) and section 193.

A copy of the seizure list or panchnama for anything taken from you or from the scene, signed at the time of seizure.

A copy of every order passed at every hearing, from the court's copying section, so that you know what the court has recorded about your case rather than what you were told in the corridor.

Ask in writing, keep the application receipt, and check the copying section yourself. In most districts this is a counter, a form and a fee, and it takes a week.

Timelines worth knowing

Stage	The rule	What it means for you
Investigation, ordinary offences	Chargesheet within 60 days, or the accused may claim default bail under s.187(3)	The clock is your leverage. Watch it.
Investigation, offences punishable with death, life or 10 years or more	Chargesheet within 90 days, or default bail	The longer period applies to the more serious offence in the FIR.
After the chargesheet	The court takes cognizance and issues process to the accused	Appearance dates start. A missed date can lead to a warrant.
Before trial begins	Documents supplied to the accused under s.230	Ask in writing at the first hearing.
Further investigation	Permitted after a chargesheet with the magistrate's leave	A chargesheet is not always the end of the investigation; a supplementary chargesheet can follow.

Table 17. Investigation timelines. The date that matters is the date of the first remand order.

PART FOUR · CHAPTER 15

Trial, plea, compromise: how criminal cases actually end

Very few criminal cases in India end with a contested judgment. Most end with a compromise, a plea, a closure, or an acquittal because a witness did not turn up. Knowing the real exits is what stops people from treating a trial as a waiting room.

The shape of a trial

After cognizance and appearance, the court supplies the documents, hears the parties, and frames the charge: a formal statement of what the accused is alleged to have done and under which section. The charge is read out, and the accused pleads. If the plea is not guilty, the prosecution examines its witnesses, the accused may cross-examine them, and then the accused's own evidence is recorded. Arguments follow, and then judgment.

For a complainant, the practical work is at the witness stage. For an accused, it is at the document stage and at the charge stage, because a charge framed under the wrong section or on inadequate material is far easier to attack at the beginning than at the end.

Plea bargaining

The BNSS retains plea bargaining, which allows an accused to plead guilty in exchange for a lesser sentence, in a defined set of cases: offences punishable with imprisonment of less than seven years, and not offences against a woman or a child, and not offences that the statute excludes as socio-economic offences. It is a real option, and it is under-used because it is misunderstood.

- It is not available for every offence, and it is never available where a woman or a child is the victim.
- It produces a conviction, recorded. That matters for future employment checks, visas and licences. It is not a clean exit.
- It can substantially reduce the sentence and the time spent in custody, which is why it is worth asking about in a case that is old, weak or unaffordable to fight.
- It is a decision to take with an advocate, in writing, after seeing the prosecution's file. Never on the day of the hearing, in a corridor.

Compounding: settling with the complainant

Section 359 allows certain offences to be compounded, which means settled between the complainant and the accused, with the court's permission. The list of compoundable offences is in the section, and it distinguishes between offences that can be compounded without the court's permission and those that need it.

- Compounding ends the case. An acquittal follows, because the composition has the effect of an acquittal under the section.
- It is not available for serious offences, and no panchayat, no family settlement and no payment can lawfully compound an offence that is not in the list. A compromise in a non-compoundable case may be considered by a court at the sentencing stage, but it does not end the case.

- It is available after a chargesheet too, which is why a case that looks unstoppable sometimes closes in months.
- Get the terms written down, filed in court, and recorded in an order. A private settlement that is never filed is a payment with no legal consequence.

Witnesses, and the witness protection scheme

If you are a complainant, the case rises or falls on whether your witnesses appear. The court issues summons; the police serve them; the witness appears. When a witness is threatened or bought, the record usually shows only that the witness did not appear, which is why contemporaneous complaints matter.

India's Witness Protection Scheme, 2018, prepared under the directions of the Supreme Court, provides for protection measures for witnesses who face a threat, ranging from police protection to relocation, on an application to the court or the police. Ask for it if there is a threat. Ask in writing, and attach the evidence of the threat.

Realistic expectations, stated honestly

Criminal cases in India take years, not months. A contested trial that ends within three years is fast. Understanding this is not pessimism; it is what lets you plan your life, your money and your family around the case instead of putting all three on hold.

Missing a date has consequences. A complainant who stops appearing can have the case closed; an accused who misses a date can face a warrant and lose bail. Put every date in a calendar, with a reminder a week before.

Keep every order copy. When the case ends, those papers are the only proof of how it ended, and you will need them for a visa, a job, a licence or a compensation claim years later.

PART FOUR · CHAPTER 16

Compensation and free legal aid: two entitlements most people never claim

Two things are available by statute to a very large number of Indians who never ask for either: compensation for victims of crime, and a lawyer at the State's expense. Both are entitlements, not charity, and both are under-claimed by an enormous margin.

Victim compensation, section 396

Section 396 requires every State, in coordination with the Central Government, to prepare a scheme for providing funds for the purpose of compensation to victims or their dependants who have suffered loss or injury as a result of the crime and who require rehabilitation. It also allows the court, in appropriate cases, to order compensation payable by the accused.

In practice there are two routes, and they can both be pursued. The first is an application to the court hearing the case, asking for compensation to be awarded. The second is an application to the State or District Legal Services Authority under the compensation scheme, which exists precisely for victims who cannot wait for a trial to end.

1. Apply early. Applications made after the trial is over are harder, and applications made while the matter is still an FIR are often the fastest.
2. Attach the FIR copy, the medical records with the injury and the treatment, the bills, proof of loss of income, and, where the victim died, the dependency documents.
3. Apply to the District Legal Services Authority in the district court, and to the court hearing the case. Keep both acknowledgements.
4. The amount is set by the State scheme and by the court's assessment. It varies by State and by the nature of the injury, which is why this book does not print a figure: a number copied from another State's scheme would be wrong and would mislead you.
5. Compensation does not require a conviction in every case. Ask your advocate about the position in your State's scheme.

Free legal aid: the statute, the categories, the ceiling

Free legal services in India are governed by the Legal Services Authorities Act, 1987, and delivered through the National Legal Services Authority, State Legal Services Authorities, District Legal Services Authorities, Taluk Legal Services Committees and the High Court and Supreme Court Legal Services Committees.

Section 12 of the Act lists who is entitled. Read the list slowly, because most people assume they do not qualify when they do.

1. A member of a Scheduled Caste or a Scheduled Tribe.
2. A victim of trafficking in human beings or of begar as referred to in Article 23 of the Constitution.
3. A woman or a child.
4. A mentally ill person or a person with a disability.

5 A person in circumstances of undeserved want, such as a victim of a mass disaster, ethnic violence, caste atrocity, flood, drought, earthquake or industrial disaster.

6 An industrial workman.

7 A person in custody, including custody in a protective home, a juvenile home or a psychiatric hospital or nursing home.

8 A person whose annual income is below the ceiling set by the State, or below five lakh rupees where the case is before the Supreme Court.

That third entry is the one most people miss. A woman does not need to prove income. A child does not need to prove income. If you are a woman or a child, you qualify on that ground alone, and you can say so at the DLSA counter.

The income ceilings, as published by NALSA

State or UT	Annual income ceiling	State or UT	Annual income ceiling
Andhra Pradesh	Rs 3,00,000	Maharashtra	Rs 3,00,000
Assam	Rs 3,00,000	Madhya Pradesh	Rs 2,00,000
Bihar	Rs 1,50,000	Odisha	Rs 3,00,000
Chhattisgarh	Rs 1,50,000	Punjab	Rs 3,00,000
Delhi	Rs 3,00,000	Rajasthan	Rs 3,00,000
Gujarat	Rs 1,00,000	Tamil Nadu	Rs 3,00,000
Haryana	Rs 3,00,000	Telangana	Rs 3,00,000
Karnataka	Rs 3,00,000	Uttar Pradesh	Rs 3,00,000
Kerala	Rs 3,00,000	Uttarakhand	Rs 3,00,000
West Bengal	Rs 1,00,000	Jharkhand	Rs 3,00,000

Table 18. Income ceilings under section 12(h), as published by the National Legal Services Authority. The ceiling is revised from time to time and some States prescribe a higher amount, so confirm the current figure with your District Legal Services Authority.

How to actually get the lawyer

1 Call 15100, the NALSA legal aid helpline, or apply online through the NALSA legal aid application. Keep the application number.

2 Or walk into the District Legal Services Authority office, which sits in the district court complex, or the Taluk Legal Services Committee in the taluk court. Ask for a legal aid application form.

3 Carry identity proof, address proof, and proof of income if you are applying on the income ground. If you are applying as a woman, a child, a person in custody, or a member of a Scheduled Caste or Scheduled Tribe, carry proof of that instead.

4 If you are in custody, you do not need to do any of this yourself. Tell the magistrate at the first production: "I do not have an advocate. I want free legal aid counsel under the Legal Services Authorities Act." The court is obliged to act on that, and the remand order will record it.

5 What you get is not a formality: representation by an advocate, preparation of pleadings, and in appropriate cases the payment of process fees and other charges connected with the proceedings.

Lok Adalats: the third door

Lok Adalats are organised by the legal services authorities and decide cases by compromise. There is no court fee, the award is final, and it is executable like a decree. They are a genuinely good fit for cheque bounce cases, matrimonial disputes, small money claims, and compoundable criminal offences. They are not a fit for anything that needs a contested finding of fact, and no one can be forced to compromise.

The sentence to say in court if you have no lawyer

"Your Honour, I have no advocate and I cannot afford one. I request free legal aid counsel under section 12 of the Legal Services Authorities Act, 1987, and I request that this be recorded in the order."

Say it at the first hearing, before the remand or the framing of charge, not after. A request made at the first hearing is recorded; a request made at the tenth is an explanation for nine unrepresented hearings.

PART FIVE · CHAPTER 17

When the police are the problem: complaints that go somewhere

Complaining about the police is not an act of hostility. It is a statutory process with its own forms, its own deadlines and its own chances of success. What decides the outcome is almost always the quality of the record you made at the time, not the strength of your anger later.

First, the evidence

Before any complaint, build the four-part record. Without it, every channel below will ask you the same three questions, and you will not be able to answer them.

1. Identification: the officer's name if visible, and always the buckle or chest number, the station, the date and the exact time.
2. Words: what was said, as close to verbatim as you can manage, including the sentence in which you were refused.
3. Paper: your complaint, its receipt or your stamped duplicate, the postal receipt, the email.
4. Physical record: photographs of injuries, the medical record, the CCTV request, the names of any witnesses who were present at the counter.

The channels, in order of cost

Channel	What it can do	What it cannot do
Written complaint to the Superintendent or Commissioner of Police	Put a file in front of the officer who supervises the station. Fast, free, and the most effective first step.	It cannot create a judicial record, and it can be closed with a one-line endorsement.
Section 173(4) letter	Compels a decision from a senior officer on whether the information discloses a cognizable offence.	It is not a direction to register; the Superintendent may conclude that no offence is disclosed.
Application under section 175(3) to a magistrate	Produces a judicial order, which is a different kind of pressure entirely.	It is slow, it costs money, and it can be dismissed.
National or State Human Rights Commission	Independent investigation and recommendations on custodial ill-treatment, refusal to act, and rights violations.	Its recommendations are not binding orders, and complaints are ordinarily expected within a year.
State Police Complaints Authority	Where a State has constituted one, it can examine serious misconduct.	Not every State has an operational authority; check before relying on it.
CPGRAMS or the State grievance portal	A tracked, time-bound, written answer from the department.	It produces an answer, not necessarily an action.
Criminal complaint against the officer	Where the conduct itself is an offence, such as extortion, wrongful confinement or assault.	It requires evidence and an advocate, and it is a serious step.

Table 19. Channels for a complaint against the police. Use the cheapest one first, and keep every acknowledgement.

The NHRC, honestly

The National Human Rights Commission and the State Human Rights Commissions can inquire into complaints of violation of human rights, including custodial violence and refusal to act. They have their own investigation wings, they can summon officers, and their reports carry real weight. What they do not do is prosecute or award damages; their recommendations go to the government, and compliance depends on the government.

Two practical points decide most NHRC complaints. Complaints are ordinarily expected to be filed within one year of the incident, so a complaint filed two years later is usually closed on that ground alone. And the complaint must name the officers and give dates; a complaint that says "the police of X district misbehaved" has nowhere to go.

The magistrate route, kept separate

There are two different complaints before a magistrate and they are constantly confused. One is about the offence: you want the crime investigated, and you use section 175(3) or a complaint case. The other is about the police: you want the officer's conduct examined, and that is a separate complaint, with its own facts and its own evidence. Filing one does not file the other, and mixing them in a single application weakens both.

Five things not to do

Do not film officers' faces and post the video. It feels like accountability and it usually produces a counter-complaint against you, which then becomes the story.

Do not threaten an officer with your contacts. It converts a legitimate grievance into a credibility problem.

Do not pay a middleman at the station. Money paid there is not a remedy, and it is often the start of a demand.

Do not let a complaint sit for months. Every channel works better with a recent incident and a clear date.

Do not accept a verbal assurance that the file has been "put up". Ask for the inward number on your copy, every single time.

PART SIX · CHAPTER 18

Ten situations, and what to do first

Most real cases are one of ten situations wearing different clothes. Each entry below gives the statute, the first move, and the mistake that costs the most.

18.1 A woman facing violence at home

Two systems run in parallel and both should be used. The criminal route is an FIR for the relevant offence, including cruelty by a husband or relative under section 85 of the BNS. The civil route is the Protection of Women from Domestic Violence Act, 2005, which provides protection orders, residence orders, monetary relief, custody orders and compensation, and which does not require you to leave the shared household to get relief.

First move: call 181, and ask for the One Stop Centre in your district, which provides medical, legal and shelter support in one place. Ask the Protection Officer or a service provider to help you file the domestic incident report. In an emergency, 112.

The costliest mistake: leaving with nothing. Take your identity documents, the children's documents, medical records and any evidence of the violence, and photograph injuries on the day they happen.

18.2 A child is involved

Child cases follow their own statutes, principally the POCSO Act and the Juvenile Justice Act, and they cannot be compromised, settled or closed by a panchayat. Procedures are child-friendly by design: a support person, a special court, recording of the child's statement at a place the child can access, and no confrontation with the accused during investigation.

First move: call 1098. If the child is in immediate danger, 112. Do not question the child repeatedly, and do not take the child to a police station before speaking to Childline or the Child Welfare Committee.

The costliest mistake: delay caused by family reputation. Every week that passes makes the case harder and the child's position worse, and the law does not permit the family to close it.

18.3 A senior citizen being abused or abandoned

The Maintenance and Welfare of Parents and Senior Citizens Act, 2007 provides a fast, low-cost tribunal route for maintenance and for protection, and it is separate from the criminal law. Where there is violence or criminal breach of trust, an FIR is also available.

First move: call 14567, the Elder Line, and file an application before the Maintenance Tribunal in the sub-divisional office. It does not need an advocate, and the fees are minimal.

The costliest mistake: treating it as a family matter for years. Property transfers made under pressure can be challenged, but the documents and the timeline decide the outcome.

18.4 Money lost to an online fraud

This is the one situation where the first hour genuinely matters. Chapter 6 sets out the sequence in full: 1930, then cybercrime.gov.in, then your bank in writing, then the FIR.

First move: 1930, with the transaction ID and the exact amount, before you do anything else.

The costliest mistake: paying a recovery agent, and waiting to "confirm" before reporting.

18.5 A cheque has bounced

A dishonoured cheque is governed by section 138 of the Negotiable Instruments Act, 1881, not by the BNSS. The sequence is statutory and unforgiving: a written demand notice within thirty days of receiving the bank's memo of dishonour, fifteen days for the drawer to pay, and a complaint within one month after that period expires if payment is not made.

First move: get the original dishonour memo from your bank, and send the demand notice by registered post with acknowledgement due, within the thirty days.

The costliest mistake: missing the thirty-day window for the notice, or the one-month window for the complaint. Both are limitation provisions, and courts have little discretion to excuse them.

18.6 A road accident

Three things run in parallel: the criminal case for the driving offence, the insurance claim, and a claim before the Motor Accident Claims Tribunal for compensation. A person who stops to help an accident victim is protected as a Good Samaritan under section 134A of the Motor Vehicles Act, 1988, which was inserted to remove the fear of being dragged into a police case for helping.

First move: 112 and an ambulance. Get the vehicle number, photograph the scene, note the time, and get the hospital record, which is the single most important document in every later claim.

The costliest mistake: settling at the spot for cash without an FIR. Without a record, the insurance claim and the tribunal claim both become an argument about whether the accident happened at all.

18.7 A person is missing

A missing person is not a matter for a waiting period. Where there is a suspicion of a crime, an FIR must be registered; where a child is missing, the Supreme Court's directions require immediate action, including registration and prompt tracing, and the child's case is treated with urgency by design.

First move: go to the police station with a recent photograph, the description, the last known location and time, and the phone number. Insist on a written acknowledgement. For a child, call 1098 as well.

The costliest mistake: accepting "come back after 24 hours". There is no such rule in the statute, and every hour matters in tracing.

18.8 A landlord and tenant dispute

The police will not evict a tenant, and they are right not to: possession is decided by a civil court, and a landlord who tries to use the police to evict is committing an offence, not enforcing a right. Equally, a tenant who refuses to pay and refuses to leave is a civil matter until the conduct becomes criminal: house trespass, criminal intimidation, or damage to property.

First move: read the rent agreement, send a written notice, and file the appropriate civil proceeding. If there is a threat of violence, that is a separate criminal complaint with its own evidence.

The costliest mistake: withholding the deposit or the rent as leverage. It converts a clean civil claim into a contested one.

18.9 Defamation

Defamation under section 356 of the BNS is a non-cognizable offence, which means the police cannot investigate it on their own. The route is a complaint before a magistrate, or a civil suit for damages, or both. Truth, public good and good faith are the defences that matter.

First move: preserve the publication with the date and time visible, and send a legal notice. For online content, also use the platform's grievance mechanism, which is time-bound under India's intermediary rules.

The costliest mistake: publishing a counter-accusation. It usually creates a second defamation claim against you and destroys the first.

18.10 A notice under section 35(3) arrives at your door

This is the most common way an ordinary person first meets the criminal law, and the most commonly mishandled. A notice of appearance under section 35(3) is not an arrest and not a summons from a court. It is a direction to appear before the police officer on a stated date in a stated matter, and it exists precisely so that you are not arrested.

First move: do not ignore it, and do not simply turn up alone. Reply in writing before the date, through an advocate, confirming that you will appear, asking for the nature of the allegation and the section, and asking for a copy of the notice and of the complaint. Then appear on the date, with documents, and with an advocate if you can.

The costliest mistake: not appearing. A person who ignores a section 35(3) notice gives the officer a lawful reason to arrest, and the Supreme Court's January 2026 order in Satender Kumar Antil protects a person who complies with the notice, not one who ignores it.

The pattern across all ten

In every one of these situations, the first twenty-four hours produce the documents that decide the next two years. The hospital record, the dishonour memo, the postal receipt, the screenshot with the date, the written notice, the acknowledgement at the counter.

The second thing that decides the outcome is which statute you are actually in. A cheque bounce is not an FIR. A tenancy is not an FIR. A missing child is an FIR without a waiting period. Getting the door right is most of the work.

PART SEVEN · CHAPTER 19

Twelve worksheets and drafts you can use today

Everything in this chapter is designed to be printed, filled in by hand, and carried. The drafts are skeletons: they give you the structure and the statutory references, and you fill in the facts. Where a matter is serious, have an advocate look at the draft before you file it.

A note on how to use the drafts. Replace everything in square brackets. Keep one copy for yourself, always, and take two to the counter. Do not remove the statutory references: they are what distinguish a complaint that gets read from a letter that gets filed.

Worksheet 1 · Incident sheet

Fill this in before you go anywhere. It takes fifteen minutes and it is the difference between a complaint that is registered and one that is not.

Incident sheet

Date of incident: ..... Time: ..... Day of week: .....

Exact place, with landmark and pin code:

What happened, in order, with times:

Who did it: name, description, vehicle number, phone number, workplace, relationship:

What was taken, damaged or injured, with quantity and value:

Witnesses: name, phone number, address:

Evidence that exists and where it is: CCTV, hospital, bank, messages, photographs:

Sections of the BNS that appear to apply (ask an advocate if unsure):

Worksheet 2 · Written complaint to the station house officer

Complaint to the Station House Officer

To,
The Station House Officer,
[Police station name], [District], [State]

Date: [date]

Subject: Written complaint regarding a cognizable offence under section [section] of the Bharatiya Nyaya Sanhita, 2023, and request for registration of an FIR under section 173 of the Bharatiya Nagarik Suraksha Sanhita, 2023.

Sir or Madam,

1. I, [full name], aged [age], residing at [full address], phone [number], state as follows.
2. On [date] at about [time], at [place with landmark], the following happened: [sequence of events in numbered sentences, with times].
3. The person or persons responsible are: [name and identifying details, or description if unknown].
4. As a result, I have suffered [loss or injury], valued at [amount], and the documents in support are enclosed as Annexure A to [letter].
5. The information above discloses the commission of a cognizable offence under section [section] of the Bharatiya Nyaya Sanhita, 2023.
6. I therefore request you to register the information as a First Information Report under section 173(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, investigate the matter, and supply me a copy of the information as recorded, forthwith and free of cost, under section 173(2).

Enclosures: [list every document]

Yours faithfully,
[Signature]
[Name, address, phone]

Received by: [name, buckle number, date, time, station stamp]

Take two copies. Ask the officer to stamp, sign and time the second copy, and keep it. If the officer refuses, post the same complaint by speed post with acknowledgement due and keep the receipt.

Worksheet 3 · Letter to the Superintendent of Police under section 173(4)

Complaint to the Superintendent of Police

To,
The Superintendent of Police,
[District], [State]

Date: [date]

Subject: Complaint under section 173(4) of the Bharatiya Nagarik Suraksha Sanhita, 2023 against the refusal of [police station] to record information about a cognizable offence.

Sir or Madam,

1. On [date] I gave a written complaint at [police station] about an incident that took place on [date] at [place]. A copy is enclosed as Annexure A.
2. The officer on duty, [name and buckle number, if known], refused to register the information, and did not supply me a copy under section 173(2). [State what was said, in the officer's words if you remember them.]
3. I sent the same complaint by speed post to the station house officer on [date], tracking number [number]. The delivery record is enclosed as Annexure B.
4. The information discloses a cognizable offence under section [section] of the Bharatiya Nyaya Sanhita, 2023. [One sentence explaining why.]
5. Under section 173(4) of the Bharatiya Nagarik Suraksha Sanhita, 2023, I request you to either investigate the case yourself or direct an investigation by a subordinate officer.
6. I request a written acknowledgement of this complaint and information on the action taken, at the address below.

Enclosures: Annexure A, Annexure B, [others]

Yours faithfully,
[Signature]
[Name, full address, phone, email]

Send by speed post with acknowledgement due, and by email. Keep both receipts. Give it seven to ten working days before the next step.

Worksheet 4 · Application to a magistrate under section 175(3)

Application under section 175(3) BNSS

In the Court of the [Judicial Magistrate, First Class], [place]

Application No. ..... of 20....

In the matter of: [Applicant name] ... Applicant
Versus
[Names of the persons complained against] ... Respondents

Application under section 175(3) of the Bharatiya Nagarik Suraksha Sanhita, 2023, for a direction to register a First Information Report and investigate a cognizable offence.

Most respectfully showeth:

1. That on [date] the applicant gave a written complaint at [police station] disclosing the commission of a cognizable offence under section [section] BNS. A copy is annexed as Annexure P-1.
2. That the station house officer did not register an FIR and did not supply a copy under section 173(2). The applicant's complaint, with the receipt dated [date], is annexed as Annexure P-2.
3. That the applicant sent the substance of the information in writing and by post to the Superintendent of Police on [date] under section 173(4). The postal receipt and delivery record are annexed as Annexure P-3 and P-4. No action has been taken.
4. That the information discloses a cognizable offence on its face, and the applicant has no other efficacious remedy.
5. That this application is supported by the affidavit of the applicant annexed as Annexure P-5, and is not intended to settle a civil dispute or to pressurise the respondents.

It is therefore prayed that this Hon'ble Court be pleased to direct the [police station] to register an FIR and investigate the offence, and pass such further orders as this Hon'ble Court deems fit.

Place: [place] Applicant
Date: [date] Through counsel: [name]

Attach: the complaint, its receipt, the letter to the SP with postal proof, your affidavit, your evidence, identity proof and the vakalatnama. If you cannot afford an advocate, apply for legal aid under Chapter 16 before filing.

Worksheet 5 · Arrest memo checklist

Use this at the station, in the first hour, and write the answers down. If the answer to any line is no, note the refusal and the officer's name.

Arrest memo checklist

Name and buckle number of the arresting officer, noted and legible:

Time and place of arrest, recorded to the minute:

Arrest memo prepared, with the signature of at least one witness:

Arrest memo countersigned by the arrested person, and a copy given:

Grounds of arrest communicated, and given in writing:

One relative or friend informed, with the name and number recorded:

Advocate informed, and the right to meet the advocate during interrogation recorded:

Medical examination conducted, and the result recorded:

Worksheet 6 · Family action sheet for the first twenty-four hours

Family action sheet

Station name, address and phone number:

Officer's name, buckle number, and the time of arrest:

Section named in the FIR, and whether the offence is bailable (ask an advocate):

Advocate contacted: name, phone, time: / Legal aid: 15100 called at .....

Documents taken to court: identity, address, medical, surety papers:

Production date, court and time:

What the magistrate recorded about the time of arrest and any complaint of ill-treatment:

Next date, and who is diarising it:

Worksheet 7 · Bail application skeleton

Bail application skeleton

In the Court of [court], [place]

Bail Application No. ..... of 20....

[Accused name] ... Applicant
Versus
State of [State] ... Respondent

Application for bail under section [478 / 480 / 482 / 187(3)] of the Bharatiya Nagarik Suraksha Sanhita, 2023.

1. That the applicant has been [arrested on [date] / apprehends arrest] in FIR No. [number] dated [date] registered at [police station] under section [section] BNS.
2. That the applicant is a permanent resident of [address], and has roots in society: [family, employment, business, children in school, property]. Documents annexed.
3. That the applicant has no previous criminal record. [If there is one, disclose it here and explain it.]
4. That the applicant has cooperated with the investigation, appeared whenever required, and produced all documents sought.
5. That the documents relevant to the investigation have been seized and the applicant's custodial interrogation is no longer required.
6. That the applicant undertakes to abide by all conditions, including [surrender of passport, weekly reporting, no contact with the complainant].
7. [Where applicable] That the applicant is entitled to bail under section 187(3), the period prescribed for completion of investigation having expired on [date].
8. [Where applicable] That a notice under section 35(3) was not issued although the offence is punishable with imprisonment of less than seven years, contrary to the law laid down in Satender Kumar Antil v. Central Bureau of Investigation (order dated 15 January 2026).

It is therefore prayed that the applicant be released on bail on such terms and conditions as this Hon'ble Court deems fit.

Place: [place] Applicant
Date: [date] Through counsel: [name]

Attach: the FIR copy, the arrest memo, the remand order, address proof, employment or business proof, and any previous orders. Ask the court in the application itself to accept a personal bond if a local surety is not available.

Worksheet 8 · Victim compensation application

Application for victim compensation

To,
The Secretary, District Legal Services Authority,
[District court complex], [District]

Date: [date]

Subject: Application for compensation as a victim of crime under section 396 of the Bharatiya Nagarik Suraksha Sanhita, 2023 and the compensation scheme of the State of [State].

1. Name, age, address and contact of the applicant, and the relationship to the victim:
2. FIR number, date, police station and section:
3. What happened, in brief, with the date and place:
4. The injury, loss or damage suffered, and the treatment taken:
5. The expenses incurred, with bills, and the loss of income:
6. Whether any compensation has been received from any other source:
7. Documents enclosed: FIR copy, medical records and bills, proof of income, identity proof, [others]

I request that compensation be sanctioned under the applicable scheme.

Signature: ..... Name: .....

File one copy with the DLSA and one with the court hearing the case. Keep both acknowledgements. Ask your advocate about the position in your State's scheme on whether a conviction is required.

Worksheet 9 · Complaint to the Human Rights Commission

Complaint to NHRC or SHRC

To,
The [National / State] Human Rights Commission,
[Address]

Date: [date]

Subject: Complaint of violation of human rights by officers of [police station], [district], on [date].

1. Complainant: name, address, phone, email, and the capacity in which the complaint is made.
2. Victim: name, age, address, and the relationship to the complainant.
3. Date, time and place of the incident:
4. Officers involved: names if known, buckle numbers, station, and rank:
5. What happened, in numbered sentences, with the exact words used where you remember them:
6. Injuries and medical treatment, with the medical record enclosed:
7. Complaints already made, with dates and acknowledgement numbers:
8. What you want the Commission to do: inquire, call for a report, and recommend action.

Enclosures: [identity, medical record, photographs, complaint copies, acknowledgements]

Signature: .....

Complaints are ordinarily expected within one year of the incident. Name the officers, give the dates, and attach the medical record.

Worksheet 10 · Evidence preservation checklist

Evidence preservation checklist

Photographs of the scene, injuries or damage, with the date visible, backed up to two places:

Screenshots of messages, call logs, transaction records and profiles, with the date visible:

Original documents kept in one folder, and scanned copies made:

Names and phone numbers of every witness, recorded on the day:

CCTV identified by location and owner, and a written request made before it is overwritten:

Medical records, prescriptions and bills collected and kept together:

Every receipt, acknowledgement and reference number filed in date order:

A single timeline sheet, updated after every visit and every call:

Worksheet 11 · Case tracker

Case tracker

FIR number, date, police station, section:

Investigating officer: name, buckle number, phone, station:

Date of first remand, and the sixtieth or ninetieth day from that date:

Chargesheet filed: date, and whether a copy was received:

Court, case number, and the next date of hearing:

Advocate: name, phone, and the fee arrangement in writing:

Every order passed, with the date and a one-line summary:

Anything pending from the police or the court, and who is following it up:

Worksheet 12 · The one-page household protocol

Fill this in once, keep a copy in the house and a photograph on two phones. In an emergency nobody remembers a section number; everybody can read a page.

Household protocol

Nearest police station, address and phone:

Two advocates with phone numbers, and one who handles criminal matters:

Two people who can stand surety, with phone numbers:

Where the family keeps identity documents, property papers and medical records:

The district court complex address, and the DLSA office location:

Blood group, allergies and regular medication for each family member:

Insurance policy numbers, and the claim helpline for each:

The one person outside the household who is called first:

PART SEVEN · CHAPTER 20

Glossary, official links, and how to verify every claim

This chapter exists so that you never have to take this book's word for anything. Every link below is an official source, and every claim in the book can be checked against one of them.

Glossary

Term	What it means
FIR	First Information Report. The record of the first information about a cognizable offence, made under section 173 BNSS.
Zero FIR	An FIR registered by a station that does not have jurisdiction, and then transferred. The statutory basis is the words irrespective of the area in section 173(1).
Cognizable offence	An offence for which the police may investigate and arrest without a warrant. Classified in Schedule I of the BNSS.
Non-cognizable offence	An offence for which the police need a magistrate's order to investigate.
Bailable offence	An offence in which release on bail is a matter of right under section 478.
Charge	The formal statement, framed by the court, of what the accused is alleged to have done and under which section.
Chargesheet	The police report filed on completion of investigation, under section 193.
Closure report	A report filed by the police concluding that no offence is made out. Also called a final report, untraced report or B summary in different States.
Cognizance	The stage at which a magistrate takes note of an offence and applies his mind to it, which is what starts the court process.
Remand	A magistrate's order authorising continued detention after the first twenty-four hours.
Default bail	Bail as of right where the chargesheet is not filed within sixty or ninety days, under section 187(3).
Anticipatory bail	A direction under section 482 that a person who apprehends arrest be released on bail if arrested.
Surety	A person who undertakes to produce the accused in court, and who may be required to pay if the accused does not appear.
Interim bail	Bail granted for a limited period, usually until the next hearing.
Compounding	Settlement of an offence with the complainant's consent, with the court's permission, under section 359.
Plea bargaining	A negotiated plea of guilty in a defined class of lesser offences, in exchange for a lesser sentence.
Protest petition	A written objection filed by a complainant against a police closure report.
Summons case	A case relating to an offence punishable with imprisonment of two years or less.
Warrant case	A case relating to an offence punishable with more than two years of imprisonment.
Vakalatnama	The document by which an advocate is authorised to appear for a party.
Affidavit	A sworn statement in writing, required for an application under section 175(3).
Panchnama	A record of seizure or inspection prepared in the presence of witnesses.
Case diary	The investigating officer's record of the investigation, produced to the magistrate at remand.
DLSA	District Legal Services Authority. The office in the district court that provides free legal aid.

Term	What it means
NALSA	National Legal Services Authority. The apex body under the Legal Services Authorities Act, 1987.
Lok Adalat	A forum organised by the legal services authorities that decides cases by compromise, with no court fee.
Good Samaritan	A person who helps an accident victim, protected under section 134A of the Motor Vehicles Act, 1988.

Table 20. Glossary of the terms used in this book.

Official links, in one place

- India Code, the official repository of Central Acts, for the full text of the BNSS, BNS and BSA: indiacode.nic.in
- The Supreme Court of India, for orders and judgments, including Satender Kumar Antil (2026 INSC 115): sci.gov.in
- The National Legal Services Authority, for legal aid applications, income ceilings and compensation: nalsa.gov.in
- The National Crime Records Bureau, for Crime in India: ncrb.mha.gov.in
- The National Cyber Crime Reporting Portal, for financial fraud complaints: cybercrime.gov.in
- The Emergency Response Support System, for police, fire and ambulance: dial 112
- eCourts, for case status and orders by court, district and case number: ecourts.gov.in
- The National Human Rights Commission, for complaints against public servants: nhrc.nic.in
- CPGRAMS, for grievances against government departments including police: pgportal.gov.in

Sources for the figures in this book

Every number in this book comes from one of the following, checked on 6 November 2026.

1 National Crime Records Bureau, Crime in India 2023, Ministry of Home Affairs, published September 2025. Used for the counts of cognizable crimes, complaints, FIRs, e-FIRs, charge-sheeting rate and crime rate in Chapter 3 and Table 5.

2 Bharatiya Nagarik Suraksha Sanhita, 2023 (Act 46 of 2023), published on India Code, in force from 1 July 2024. Used for sections 35, 36, 38, 43, 47, 57, 58, 173, 175, 187, 193, 230, 359, 396, 478, 479, 480, 482 and 483.

3 Satender Kumar Antil v. Central Bureau of Investigation, Supreme Court of India, order dated 15 January 2026, reported as 2026 INSC 115. Used in Chapters 1, 9 and 18.

4 Mihir Rajesh Shah v. State of Maharashtra, Supreme Court of India, judgment dated 6 November 2025. Used for the requirement that grounds of arrest be communicated in writing, in Chapters 9 and 10.

5 Lalita Kumari v. Government of Uttar Pradesh, Supreme Court of India (2013). Used for the mandatory registration principle and the limited categories for a preliminary enquiry, in Chapter 8.

6 D.K. Basu v. State of West Bengal, Supreme Court of India (1997). Used for the arrest safeguards, now reflected in sections 36 to 58 BNSS, in Chapter 9.

7 Priyanka Srivastava v. State of Uttar Pradesh, Supreme Court of India (2015); Om Prakash Ambadkar v. State of Maharashtra, 2025 INSC 139; XXX v. State of Kerala, 2026 INSC 88. Used for the discipline required of applications under section 175(3), in Chapter 7.

8 National Legal Services Authority, Legal Aid page, including the list of categories under section 12 of the Legal Services Authorities Act, 1987 and the State-wise income ceilings. Used in Chapter 16 and Table 18.

9 Ministry of Home Affairs and state police pages, for the 112, 1930, 181, 1098, 14567 and 15100 helpline numbers, in Table 2.

10 Reserve Bank of India customer protection framework for unauthorised electronic banking transactions, referenced in Chapter 6 for the liability position on reporting cyber fraud.

A closing note

The Indian criminal justice system is slow, unevenly staffed, and often indifferent. It is also, on paper, one of the more protective systems in the world for a person who knows what to ask for. Almost every right described in this book exists because somebody, at some point, insisted on it in a room where nobody wanted to hear it.

You do not need to memorise a single section number. You need three habits: write it down, get a receipt, and escalate in writing on a date you have already decided. Everything else in this book is detail on top of those three habits, and the detail is here for the day you need it.

If you take one page from this book into a police station, take the four documents page in Chapter 4. If you take one sentence into a court, take the legal aid sentence in Chapter 16. And if someone you know is in custody, take the default bail clock in Chapter 12, because that is the one deadline in Indian criminal law that nobody will remind you about.

This edition

The Indian Police, FIR and Bail Rights Playbook 2026-27, Digital Edition. Published by Digitalaikart, digitalkartai.shop. Verified against official sources on 6 November 2026.

This is legal information, not legal advice, and it does not create a lawyer-client relationship. Statutory provisions, State schemes, income ceilings and court practice change. Confirm the current position with an advocate, or with your District Legal Services Authority, before you act on anything in this book.